

77 98349

DECLARATION OF CONDOMINIUM

BARWOOD CONDOMINIUM II,
a condominium
BOCA RATON, FLORIDA

DEVELOPER

Barwood Development Corporation
George H. Sparling, President

LEGAL COUNSEL

Reynolds and Marchbanks
Boca Raton, Florida

FINANCING

Boca Raton Federal Savings &
Loan Association
Boca Raton, Florida

ESCROW AGENT

Boca Raton Federal Savings &
Loan Association
Boca Raton, Florida

ARCHITECTS

Lawrence Browning
Lester W. Boese

77 6 4 AM 10:04

307.20

SUMMARY OF THE CONDOMINIUM DOCUMENTS

DECLARATION OF CONDOMINIUM

Pursuant to the provisions of this instrument BARWOOD DEVELOPMENT CORPORATION will submit BARWOOD CONDOMINIUM II, A CONDOMINIUM, to the condominium form of ownership under Florida Statute 718, the Condominium Act. The Declaration with its exhibits will be recorded among the Public Records of Palm Beach County, Florida, when the condominium building Barwood Condominium II, a condominium, is substantially completed. The Declaration together with the exhibits describe each unit and its dimensions, show the location of parking spaces and common areas, generally describes the obligation of maintenance and repair, sets forth the percentage of the common elements and common expense accruing to each unit owner. Further, the Declaration also contains provisions relating to maintenance of the condominium community interest, with regard to sale and rental of a unit and the first right of refusal of the Condominium Association. The Declaration is, in essence, the Constitution of the Condominium.

ARTICLE OF INCORPORATION

BARWOOD CONDOMINIUM II, A CONDOMINIUM. The condominium is operated by BARWOOD CONDOMINIUM II ASSOCIATION, INC., a Florida Corporation not-for-profit. This corporation was created by filing with the Secretary of the State of Florida a document entitled the Articles of Incorporation. The Articles of Incorporation provide that each unit owner shall become a member of the Association, sets forth the qualifications for membership of the Board of Directors, and specifies the officers of the Association and their respective functions.

BY-LAWS

BARWOOD CONDOMINIUM II, A CONDOMINIUM. The By-Laws set out specifically the guidelines for the day to day operation of the condominium and the Association. The By-Laws describe the powers and duties of the Board of Directors, how and when Directors' meetings are held, the duties of the officers of the corporation and sets forth the items of the budget.

RULES AND REGULATIONS

BARWOOD CONDOMINIUM II, A CONDOMINIUM. The Rules and Regulations are promulgated by the Board of Directors of the Condominium Association and apply to all members, their families, their guests, and their invitees. The Rules and Regulations are

established to maintain an orderly, healthy and congenial life style of each member of the Condominium Association.

DECLARATION OF COVENANTS AND RESTRICTIONS FOR IMPROVEMENTS AND MAINTENANCE

BARWOOD CONDOMINIUM IMPROVEMENT ASSOCIATION. This document creates restrictions on the land submitted to the condominium form of ownership and creates the right of the Barwood Condominium Improvement Association, Inc., a non-profit corporation to control the Barwood Condominium recreation facilities. Each unit owner of Barwood Condominium will be a member of the Barwood Condominium Improvement Association and contribute to the operation and expenses of the recreation facilities.

BY-LAWS

BARWOOD CONDOMINIUM IMPROVEMENT ASSOCIATION, INC. These By-Laws set out the guidelines for the day to day operation of the Barwood Condominium Improvement Association, Inc.

ARTICLES OF INCORPORATION

BARWOOD CONDOMINIUM IMPROVEMENT ASSOCIATION, INC. The umbrella organization which will operate and maintain the recreation improvements, and provide recreational services to the entire Barwood Condominium project as it is developed, is a non-profit corporation established by the Articles of Incorporation.

PROPOSED BUDGET

The proposed budget is included in this document but is not a part of the Declaration of Condominium. The Proposed Budget is required by law to be submitted to each Purchaser and is delivered to inform the Purchaser of the obligation incurred by membership in the respective Condominium Associations (BARWOOD CONDOMINIUM II ASSOCIATION, INC. and Barwood Condominium Improvement Association, Inc.).

DECLARATION OF CONDOMINIUM
FOR
BARWOOD CONDOMINIUM II, A CONDOMINIUM
Boca Raton, Florida 33432

Made this 28 day of JUNE, 1977, by BARWOOD DEVELOPMENT CORPORATION, as owner of the herein described real property and developer of the improvements thereon, hereafter called the "Developer" for itself, its successor, grantors, assignees of their transferees.

WHEREAS, said Owner and Developer makes the following declaration:

1. Purpose. The purpose of this Declaration is to submit the lands described in this instrument and improvements on such lands, and improvements to be constructed upon such lands to the condominium form of ownership and use in the manner provided by Chapter 718, Florida Statutes, hereinafter referred to as "Condominium Act."

1.1 The name by which this condominium is to be identified is BARWOOD CONDOMINIUM II, A CONDOMINIUM.

1.2 The address of this condominium is
23279 Barwood Lane North
Boca Raton, Florida 33432

1.3 The lands owned by the Developer, which by this instrument are submitted to the condominium form of ownership are those certain lands lying in Palm Beach County, Florida, as described in Exhibit "B" attached hereto, and made a part hereof, which shall hereinafter be referred to as "the land." Said lands shall be subject to conditions, restrictions, limitations and easements of record and reservations of record.

1.4 Covenants. All provisions of the Declaration shall be construed to be perpetual covenants running with the land and with every part thereof and interest therein, and every unit owner and claimant of the land or any part thereof or interest therein, and his heirs, executors and administrators, successors and assigns, shall be bound by all of the provisions of the Declaration, unless this Declaration shall be terminated pursuant to the Condominium Act and/or as provided herein. Both the burdens imposed and the benefits shall run with each unit as herein defined.

2. Definitions. The terms used in this Declaration, the Articles of Incorporation, the By-Laws and the Rules and Regulations of BARWOOD CONDOMINIUM II ASSOCIATION, INC., a Florida corporation not for profit, shall have the meaning stated in the Condominium Act and as follows unless the context otherwise requires.

Further, whenever the context so requires, the use of any gender shall be deemed to include all genders, the use of the plural shall include the singular, and the singular shall include the plural.

2.1 Association means the BARWOOD CONDOMINIUM II ASSOCIATION, INC., and its successors or assigns.

2.2 Assessments means a share of the funds required for the payment of the condominium expenses which from time to time are assessed against the individual owner.

2.3 By-Laws means the By-Laws for the government of the condominium as they exist from time to time.

2.4 Common element means the portions of the condominium property not included in the units and, in addition thereto, all other items as stated in this Declaration.

2.5 Common expenses means the expenses for which the unit owners are liable, which shall include but not be limited to the following:

1. Expenses of administration and management of the condominium property.
2. Expenses of maintenance, operation, repair or replacement of common elements.
3. Expenses declared common expenses by the provisions of this Declaration or by the By-Laws.
4. Any valid charge against the condominium as a whole.
5. Any expenses of, charge to or assessment by the Association as provided for in this Declaration, the Articles of Incorporation and/or the By-Laws.
6. Expense of maintenance, operation, repair, administration and management of Barwood Condominium Improvement Assoc., Inc.

2.6. Common surplus means the excess of all receipts of the Association, including but not limited to assessments, rents, profits and revenues on account of the common elements, over the amount of common expenses.

2.7 Condominium is that form of ownership of condominium property under which units of improvements are subject to ownership by one or more owners, and there is appurtenant to each unit as part thereof an undivided share in the common elements.

2.8 Condominium parcel means a unit together with the undivided share in the common elements which is appurtenant to the unit.

2.9 Condominium property means and includes the land in this condominium, whether or not contiguous, and all improvements thereon and all easements and rights appurtenant thereto intended for use in connection with the condominium.

2.10 Declaration, or Declaration of Condominium, means the instrument or instruments by which this condominium is created, and said instrument or instruments as they may be from time to time amended.

2.11 Limited common element means and includes those common elements which are reserved for the use of a certain unit or units to the exclusion of other units.

2.12 Member. As used herein the term "member" means and refers to any person, natural or corporate, who becomes a member of the Association as described in the Articles and By-Laws whether or not that person participates in the Association as a member.

2.13 Operation, or operation of the condominium, means and includes the administration and management of the condominium property.

2.14 Institutional Mortgagee is the owner and holder of a mortgage encumbering a condominium parcel, which owner and holder of said mortgage shall be either a bank, life insurance company, federal or state savings and loan association, real estate or mortgage investment trust, or other mortgagee which shall be acceptable to the association.

2.15 Unit means a part of the condominium property which is subject to private ownership.

2.16 Unit owner means the owner of a unit.

2.17 Utility service, as used in the Condominium Act and as construed with reference to this condominium, and as used in the Declaration and By-Laws, shall include but not be limited to, electric power, gas, hot and cold water, heating, refrigeration, garbage, sewage disposal and solar energy.

3. Development Plans.

3.1 Improvements.

1. Annexed hereto and made a part hereof as Exhibit A is the survey, site plan and graphic descriptions of all units, including their identification numbers, locations and dimensions and the Common Elements and Limited Common Elements. Together with this Declaration, said Exhibit is in sufficient detail to identify each of said units and the Common Elements and Limited Common Elements, their relative locations and approximate dimensions. The legend and notes contained therein are incorporated herein and made a part hereof by reference.

2. Where more than one typical unit has been acquired by the same owner and combined into a single dwelling place, the typical unit plans may not reflect the interior plans of the

combined units, but the exterior boundaries of the combined units remain the same. Should any unit be combined, combined units shall exist as separate units as described in the Declaration for the purposes of the Declaration, Articles of Incorporation of the Association and the By-Laws.

3.2 Plot Plan. A plot plan and survey of the lands comprising the Condominium locating the improvements constructed thereon, is attached hereto as Exhibit A.

3.3 Unit Plans. As to the building constructed pursuant to the development plan of the condominium, attached hereto is Exhibit A, page 1, a survey and plot plan; and, Exhibit A, pages 2 through 4 which contains elevations and floor plan. The legal description of each unit shall consist of the identifying number of such unit as shown on the Exhibit A attached hereto. Every deed, lease, mortgage or other instrument may legally describe a unit and/or condominium parcel by its identifying number as provided for on the attached Exhibit A and each and every description shall be deemed good and sufficient for all purposes.

3.4 Phase Development. Barwood Condominium is being constructed as a phase development. The commitment and development plan for phase construction is attached hereto and made a part hereof and identified as paragraph 14 to the Prospectus.

4. Unit Boundaries. Each unit shall include that part of the building containing the unit that lies within the boundaries of the unit, which boundaries are as follows:

4.1 Upper and Lower Boundaries. The upper and lower boundaries of the unit shall be the following boundaries extended to an intersection with the perimetrical boundaries:

1. Upper Boundary: The horizontal plane of the underdecorated finished ceiling.
2. Lower Boundary: The horizontal plane of the undecorated finished floor.

4.2 Perimetrical Boundaries. The perimetrical boundaries of the unit shall be the vertical plane of the undecorated finished interior of the walls bounding the unit extended to intersections of each other and with the upper and lower boundaries.

4.3 Boundaries - Further Defined. The boundaries of the unit shall not include all of those spaces and improvements lying beneath the undecorated and/or unfinished inner surfaces of the perimeter walls and floors, and those surfaces above the undecorated and/or unfinished inner surfaces of the ceilings of each unit, and further shall not include those spaces and improvements lying beneath the undecorated and/or unfinished inner surfaces of all interior bearing walls and/or bearing partitions, and further, shall exclude all pipes, ducts, wires, conduit, and other facilities running through any interior wall or partition for the utility services to other units and/or for common elements.

4.4 Balconies. A unit shall include where applicable, as indicated upon Exhibit A, a balcony, the boundaries of which shall be as follows: All upper, lower and perimetrical boundaries shall be the same as set forth above. However, should a perimetrical boundary be screening or railing, then the unit shall include the screening and/or railing and the boundary shall be the exterior surface of the frame of the screening and/or the exterior surface of the railing, except those between units which shall be treated the same as perimeter walls, as provided for in 4.2 above.

5. Ownership.

5.1 Type of Ownership. Ownership of each condominium parcel may be in fee simple, or in any other estate in real property recognized by the law and at least subject to this Declaration and restrictions, reservations, limitations of record.

5.2 Association Membership. The owners of record of the units shall be members of the Association. There shall be one membership for each unit and if there is more than one record owner per unit, then such membership shall be divided among such owners in the same manner and proportion as is their ownership in the unit.

5.3 Unit Owners' Rights. The owner of a unit is entitled to the exclusive possession of his unit. He shall be entitled to use the common elements in accordance with the purposes for which they are intended, but no such use shall hinder or encroach upon the lawful rights of owners of other units. There shall be a joint use of the common elements and a joint mutual easement for that purpose is hereby created.

6. Restraint Upon Separation and Partition of Common Elements.

The fee title of each condominium parcel shall include both the condominium unit and an undivided interest in the common elements, said undivided interest in the common elements to be deemed to be conveyed or encumbered with its respective condominium unit; even though the description in the instrument of conveyances may refer only to the fee title to the condominium unit. Any attempt to separate and/or action to partition the fee title to a condominium unit from the undivided interest in the common elements appurtenant to each unit shall be null and void.

7. Percentage of Ownership of Common Elements. Each of the unit owners of the condominium shall own an undivided interest in the common elements, equal to the following fraction: $1/36$ - one (1) thirty-six (36).

8. Common Expense and Common Surplus.

8.1 The common expenses to be borne by each unit owner shall be a proportionate share of the total expenses and costs

of the Association. Each unit owner shall be responsible for a portion of the common expenses and costs. Such share shall be in the same percentage of the undivided share in the common elements appurtenant to his unit, as set forth in Paragraph 7 of the Declaration.

8.2 Any common surplus of the Association shall be owned by each of the unit owners in the same proportion as their percentage liability for common expenses.

9. Maintenance, Alterations and Improvements. Responsibility for the maintenance of the condominium property and restrictions upon its alterations and improvements shall be as follows:

9.1 Units.

1. By the Association. The Association shall maintain, repair and replace, at the Association's expense:

(a) All portions of a unit building contributing to the support of the unit building, which portions shall include, but not limited to outside walls of the unit building and all fixtures on its exterior, those portions of boundary walls not a part of unit, floor and ceiling slabs, load-bearing columns and load-bearing walls;

(b) All conduits, ducts, plumbing, wiring and other facilities for the furnishing of utility services contained in the portion of a unit maintained by the Association; and, all such facilities contained within a unit that services part or parts of the condominium other than the unit within which contained;

(c) All incidental damage caused to a unit by such work immediately above-described shall be repaired promptly at the expense of the Association.

2. By the unit owner. The responsibility of the unit owner shall be as follows:

(a) To keep and maintain his unit, its equipment and appurtenances in good order, condition and repair, and to perform promptly all maintenance and repair work within his unit which, if omitted, would affect the condominium in its entirety or in a part belonging to other owners or would affect other condominiums subject to the foregoing plan of development, being expressly responsible for the damages and liability which his failure to do so may engender. Notwithstanding anything contained in this Declaration, the owner of each unit shall be liable and responsible for the maintenance, repair and replacement, as the case may be, of all windows and all exterior doors, including sliding glass doors and all air conditioning and heating equipment, stoves, refrigerators, fans and other appliances and equipment, including pipes, wiring, ducts, fixtures and/or their connections required to provide water, light, power, air conditioning and heating, telephone, sewage and sanitary service to his unit which may now or hereafter be situated in his unit.

(b) To maintain, repair and replace any and all walls, ceilings and floor interior surfaces, painting, decorating and furnishings, and all other accessories which such owner may desire to place and maintain in his unit.

(c) Where applicable, to maintain and keep in a neat and trim condition the floor, interior walls, screening and railings of sun decks and balconies.

(d) To promptly report to the Association any defect or need for repairs for which the Association is responsible.

(e) Plumbing and electrical repairs within a unit shall be paid for and be a financial obligation of the unit owner.

(f) Any officer of the Association or any agent of the Board shall have the irrevocable right to have access to each unit from time to time during reasonable hours as may be necessary for inspection, maintenance, repair or replacement of any Common Element therein or accessible therefrom, or for making emergency repairs therein necessary to prevent damage to the Common Elements or to another unit or units.

(g) Not to paint or otherwise decorate or change the appearance of any portion of the exterior of the unit building.

3. Alteration and Improvement. Except as elsewhere reserved to Developer, neither a unit owner nor the Association shall make any alteration in the portions of a unit that are to be maintained by the Association, or remove any portion of such, or make any additions to them, or do anything that would jeopardize the safety or soundness of the unit building, or impair any easement, without first obtaining approval in writing of owners of all units in the building in which such work is to be done and approval of the Board of Directors of the Association. A copy of plans for all such work prepared by an architect licensed to practice in this state shall be filed with the Association prior to the start of the work.

9.2 Common Elements.

1. By the Association. The maintenance and operation of the common elements including the repair, maintenance, and replacement of any and all landscaping, and other improvements and facilities shall be the responsibility of the Association as a common expense.

2. Alteration and Improvement. After the completion of the improvements included in the common elements contemplated by this Declaration, there shall be no alteration or further improvement of the real property constituting the common elements without prior approval in writing by the owners of not less than seventy-five (75%) percent of the members of the Association, if the cost of the same shall be in common expense which exceed in cumulative expenditure for the calendar year the sum of Two Thousand (\$2,000.00) Dollars. Any such alteration or improvement shall not interfere with the rights of any unit owners herein that acquires its title

as a result of owning a mortgage upon the unit owned, unless such owner shall approve the alteration or improvement and this shall be so whether the title is acquired by deed from the mortgagor or through foreclosure proceedings. The share of any cost not so assessed shall be assessed to the other unit owners in the proportion that their shares for the common expenses bear to each other.

There shall be no change in the shares and rights of a unit owner in the common elements, altered or further improved, whether or not the unit owner contributes to the costs of such alteration or improvements.

9.3 Enforcement of Maintenance. In the event the owner of a unit fails to maintain it as required above, the Association, Developer or any other unit owner shall have the right to proceed to any appropriate court to seek compliance with the foregoing provisions, or the Association shall have the right to assess the unit owner and the unit for the necessary sums to put the improvements within the unit in good condition. After such assessment, the Association shall have the right to have its employees or agents enter the unit and do the necessary work to enforce compliance with the above provision.

Further, in the event a unit owner violates any of the provisions of this section, the Developer and/or the Association shall have the right to take any and all such steps as may be necessary to remedy such violation, including, but not limited to, entry of the subject unit with or without the consent of the unit owner, and the repair and maintenance of any item requiring same, all at the expense of the unit owner.

10. Use Restrictions. The use of the property of the condominium shall be in accordance with the following provisions:

10.1 Units.

1. Each of the units shall be occupied only by an owner, his family, his servants and guests, as a residence and for no other purpose. Children under fifteen (15) years of age are not permitted as residents.

2. Except as reserved to Developer, no unit may be divided or sub-divided into a smaller unit nor any portion thereof sold or otherwise transferred without first amending this Declaration to show the changes in the unit to be affected thereby.

3. Nothing shall be hung, displayed or placed on the exterior walls, floors or windows of the unit building without the prior written consent of the Board of Directors of the Association.

4. No clothes lines or similar devices shall be allowed on any patios or balconies of the condominium property, or any other part of the condominium property, without the written consent of the Board of Directors of the Association.

5. No owner shall make, allow or cause to be made any structural addition or alteration to his unit or to the common elements without the prior written consent of the Association.

10.2 Common Elements and Limited Common Elements. The common elements and limited common elements shall be used only for the purpose for which they are intended.

10.3 Nuisances. No nuisances shall be allowed upon the condominium property, nor any use or practice which is the source of annoyance to residents or which interferes with the peaceful possession and proper use of the property by its residents. All parts of the property shall be kept in a clean and sanitary condition and no rubbish, refuse or garbage allowed to accumulate or any fire hazard allowed to exist. No unit owner shall permit any use of his unit or of the common elements which will increase the rate of insurance upon the condominium property.

10.4 Lawful use. No immoral, improper, offensive or unlawful use shall be made of the condominium property or any part thereof; and, all valid laws, zoning ordinances and regulations of all governmental bodies having jurisdiction thereof shall be observed. The responsibility of meeting the requirements of governmental bodies which require maintenance, modification or repair of the condominium property shall be the same as the responsibility for the maintenance and repair of the property concerned.

10.5 Signs. No signs shall be displayed from a unit or on common property except such signs as shall have advance written approval by the Developer or the Association.

10.6 Rules and Regulations. Reasonable rules and regulations concerning the use of the condominium property may be made and amended from time to time by the Association in the manner provided by its Articles of Incorporation and By-Laws. Copies of such regulations and amendments thereto shall be furnished by the Association to all unit owners and residents of the condominium upon request. A copy of the initial Rules and Regulations is attached hereto as Exhibit E.

10.7 Proviso. Provided, however, that until Developer has completed all of the contemplated improvements and closed the sales of all of the units of this condominium, neither the unit owners nor the Association nor the use of the condominium property shall interfere with the completion of all contemplated improvements and the sale of all units within BARWOOD CONDOMINIUM II, and Developer may make such use of the unsold units and common areas as may facilitate such completion and sale, including but not limited to maintenance of a sales office, the showing of the property and the display of signs.

11. Maintenance of Community Interests. In order to maintain a community of congenial residents who are financially responsible

and thus protect the value of the units, the transfer of units by any owner other than the Developer shall be subject to the following provisions so long as the condominium exists and the unit building in useful condition exists upon the land, which provisions each unit owner covenants to observe:

11.1 Transfer Subject to Approval.

1. Sale. No unit owner may dispose of a unit or any interest therein by sale without approval of the Association except to another unit owner.

2. Lease. No unit owner may dispose of a unit or any interest therein by lease without approval of the Association except to another unit owner.

3. Gift. If any unit owner shall acquire his title by gift, the continuance of his ownership of his unit shall be subject to the approval of the Association.

4. Devise or inheritance. If any unit owner shall acquire his title by devise or inheritance, the continuance of his ownership of his unit shall be subject to the approval of the Association.

5. Other transfers. If any unit owner shall acquire his title by any manner not heretofore considered in the foregoing subsections, the continuance of his ownership of his unit shall be subject to the approval of the Association.

11.2 Approval by Association. The approval of the Association which is required for the transfer of ownership of units shall be obtained in the following manner:

1. Notice to Association.

(a) Sale. A unit owner intending to make a bona fide sale of his unit or any interest therein shall give the Association notice of such intention, together with the name and address of the intended purchaser and such other information concerning the intended purchaser as the Association may reasonably require. Such notice at the unit owner's option may include a demand by the unit owner that the Association furnish a purchaser, if the proposed purchaser is not approved; and, if such demand is made, the notice shall be accompanied by an executed copy of the proposed contract to sell.

(b) Lease. A unit owner intending to make a bona fide lease of his unit or any interest therein shall give to the Association notice of such intention, together with the name and address of the intended lessee as Association may reasonably require, and an executed copy of the proposed lease.

(c) Gift; devise; inheritance; other transfers. A unit owner who has obtained his title by gift, devise, or inheritance, or by any other manner not heretofore considered shall give to the Association notice of the acquiring of his

title, together with such information concerning the unit owner as the Association may reasonably require, and a certified copy of the instrument evidencing the owner's title.

(d) Failure to give notice. If the notice to the Association herein required is not given, then at any time after receiving knowledge of a transaction or event transferring ownership or possession of a unit, the Association at its election and without notice may approve or disapprove the transaction or ownership. If the Association disapproves the transaction or ownership, the Association shall proceed as if it had received the required notice on the date of such disapproval.

2. Certificate of Approval.

(a) Sale. If the proposed transaction is a sale, then within thirty (30) days after receipt of such notice and information the Association must either approve or disapprove the proposed transaction. If approved, the approval shall be stated in a certificate executed by the President or a Vice President and Secretary or by the President or a Vice President and having the corporate seal affixed in recordable form and shall be delivered to the purchaser and shall be recorded in the public records of Palm Beach County, Florida, at the expense of the purchaser, said approval to be in the form of Exhibit One of the By-Laws.

(b) Lease. If the proposed transaction is a lease, then within thirty (30) days after receipt of such notice and information the Association must either approve or disapprove the proposed transaction. If approved, the approval shall be stated in a certificate executed by the President and Secretary in recordable form, which at the election of the Association, shall be delivered to the lessee or shall be recorded in the public records of Palm Beach County, Florida, at the expense of the lessee.

(c) Gift; devise; inheritance; other transfer. If the unit owner giving notice has acquired his title by gift, devise, inheritance or in any other manner, then within thirty (30) days after receipt of such notice and information the Association must either approve or disapprove the continuance of the unit owner's ownership of his unit. If approved, the approval shall be stated in a certificate executed by the President and Secretary in recordable form and shall be delivered to the unit owner and shall be recorded in the public records of Palm Beach County, Florida, at the expense of the unit owner.

3. Approval of corporate owner or purchaser. Inasmuch as the condominium may be used only for residential purposes and a corporation cannot occupy a unit for such use, if the unit owner or purchaser of a unit is a corporation, the approval of ownership by the corporation shall be conditioned upon requiring that all persons occupying the unit be also approved by the Association.

11.3 Disapproval by the Association. If the Association shall disapprove a transfer of ownership of a unit, the matter shall be disposed of in the following manner:

1. Sale. If the proposed transaction is a sale and if the notice of sale given by the unit owner shall so demand, then within thirty (30) days after receipt of such notice and information the Association shall deliver or mail by certified mail to the unit owner an agreement to purchase by a purchaser approved by the Association who will purchase and to whom the unit owner must sell the unit upon the following terms:

(a) At the option of the purchaser to be stated in the agreement, the price to be paid shall be that stated in the disapproved contract to sell, or shall be the fair market value determined by arbitration in accordance with the then existing rules of the American Arbitration Association, except that the arbitors shall be two appraisers appointed by the American Arbitration Association who shall base their determination upon an average of their appraisals of the unit; and, a judgment of specific performance of the sale upon the award rendered by the arbitrators may be entered in any court of competent jurisdiction. The expense of the arbitration shall be paid by the Purchaser.

(b) The purchase price shall be paid in cash.

(c) The sale shall be closed within thirty (30) days after the delivery or mailing of said agreement to purchase, or within ten (10) days after the determination of the sale price if such is by arbitration, whichever is the later.

(d) A certificate of the Association executed by its President or a Vice President and Secretary, or by its President or a Vice President and having the corporate seal affixed, and approving the purchaser shall be recorded in the public records of Palm Beach County, Florida, at the expense of the purchaser.

(e) If the Association shall fail to provide a purchaser upon the demand of the unit owner in the manner provided, or if a purchaser furnished by the Association shall default in his agreement to purchase, then notwithstanding the disapproval, such ownership shall be deemed to have been approved, and the Association shall furnish a Certificate of approval as elsewhere provided, which shall be recorded in the public records of Palm Beach County, Florida, at the expense of the unit owner.

11.4 Mortgage. A unit owner may not mortgage his unit, nor any interest therein, without the approval of the Association except to an institutional mortgagee, as hereinbefore defined. The approval of any other mortgagee may be obtained upon conditions determined by the Board of Directors of the Association, and said approval shall be, if granted, prepared in recordable form, executed by the President and Secretary of the Association. Where

a unit owner sells his unit and takes back a purchase money mortgage, the approval of the Association shall not be required.

11.5 Exceptions. The foregoing provisions of this section entitled "Maintenance of Community Interests" shall not apply to a transfer to or purchase by a bank, life insurance company or federal savings and loan association which acquires title as a result of owning a mortgage upon the unit concerned, and this shall be so whether the title is acquired by deed from the mortgagor or through foreclosure proceedings; nor shall such provisions apply to a transfer, sale or lease by a bank, life insurance company or federal savings and loan association which so acquires its title. Neither shall such provisions require the approval of a purchaser who acquires the title to a unit at a duly advertised public sale with open bidding which is provided by law, such as, but not limited to execution sale, foreclosure sale, judicial sale or tax sale. Neither shall any of the provisions of this section apply to the sale or lease of any unit by the Developer.

11.6 Unauthorized transactions. Any sale, mortgage or lease which is not authorized pursuant to the terms of this Declaration shall be void unless subsequently approved by the Association.

11.7 Notice of Lien or Suit.

1. Notice of Lien. A unit owner shall give notice to the Association of every lien upon his unit other than for permitted mortgages, taxes and special assessments within five (5) days after the attaching of the lien.

2. Notice of Suit. A unit owner shall give notice to the Association of every suit or other proceedings which may affect the title to his unit, such notice to be given within five (5) days after the unit owner received knowledge thereof.

Failure to comply with this subsection concerning liens will not affect the validity of any judicial sale.

11.8 Purchase of Unit by Association. The Association shall have the power to purchase units, subject to the following provisions:

1. Decision. The decision of the Association to purchase a unit shall be made by its directors, without approval of its members except as hereinafter provided.

2. Limitation. If at any one time the Association be the owner or agreed purchaser of fifteen (15) or more units, it may not purchase any additional unit without the prior written approval of seventy-five (75%) percent of members eligible to vote thereon. A member whose unit is the subject matter of the pro-

posed purchase shall be ineligible to vote thereon. Provided, however, that the foregoing limitation shall not apply to units to be purchased at public sale resulting from a foreclosure of the Association's lien for delinquent assessments where the bid of the Association does not exceed the amount found due the Association, or to be acquired by the Association in lieu of foreclosure of such lien if the consideration therefore does not exceed the cancellation of such lien.

11.9 Rights of Developer. Notwithstanding anything herein to the contrary, until the Developer has sold all of the units within BARWOOD CONDOMINIUM II, A CONDOMINIUM, in each case where the Association shall have the right to purchase a unit or find a purchaser by reason of its refusal to approve a sale or other transfer, the Developer shall have the right of first refusal to purchase such unit for itself upon the same terms and conditions available to the Association.

12. Parking Space. The following provisions will be applicable to the transfer and assignment of Parking Spaces.

12.1 Assignment of Parking Spaces. Each parking space exists as a Limited Common Element and is identified, described and located on Exhibit A. Upon the Conveyance by the Developer of such parking space in the Limited Common Elements to a unit, the owners of such unit shall have the exclusive right to the use thereof without separate charge therefore by the Association, although nothing herein contained shall be construed as relieving such owner from any portion of any assessment for common expense made against a unit, as herein provided, it being the intent that the cost of maintenance and administration of Limited Common Elements shall be included as part of the common expense applicable to all units for purposes of assessment. Upon such conveyance, the owner of the unit to whom such conveyance is made shall have the exclusive right of use of such parking space and the parking space shall become an appurtenance to said unit, and upon the conveyance of or passing of title to the unit to which a parking space conveyance is made, such interest in the limited common element (parking space) shall pass as an appurtenance thereto in the same manner as the undivided interest in the common elements appurtenant to such unit. Parking spaces designated as Guest Parking Spaces shall be a part of the Common Elements and shall be under the control and jurisdiction of the Condominium Association except that no Guest Parking Space may be assigned to a unit or otherwise transferred unless approved in the same manner as required to amend this Declaration of Condominium provided in Paragraph 19.

12.2 Restrictions on Separate Transfer of Parking Spaces. No conveyance, assignment, transfer or conveyance of title in any manner whatsoever to use a parking space constituting Limited Common Elements may be made or accomplished separately from the conveyance, or passing of title to the unit to which it is appurtenant.

13. Easements. Each of the following easements is a covenant running with the land of the condominium and, notwithstanding any of the other provisions of this Declaration, may not be substantially amended or revoked in such a way as to unreasonably interfere with their proper and intended use and purpose, and shall survive the termination of the Condominium and the exclusion of any of the lands of the Condominium from the Condominium.

13.1 Utilities. As may be required for utility services in order to adequately serve the Condominium, provided however, easements through a unit shall be only according to the plans and specifications for the building or as the building is actually constructed, unless approved, in writing, by the unit owner.

13.2 Pedestrian and Vehicular Traffic. For pedestrian traffic over, through and across sidewalks, paths, lands, and walks, as the same may from time to time exist, upon the common elements; and, for the vehicular traffic over, through and across such portions of the common elements as may be from time to time paved and intended for such purposes.

13.3 Support. Every portion of a unit contributing to the support of the unit building or an adjacent unit shall be burdened with an easement of support for the benefit of all other units and common elements in the building.

13.4 Perpetual Non-Exclusive Easement in Common Property. The common property shall be, and the same is hereby declared to be subject to a perpetual non-exclusive easement in favor of all of the owners of units in the condominium for their use and the use of their immediate families, guests and invitees, for all proper and normal purposes, and for the furnishing of services and facilities for which the same are reasonably intended, for the enjoyment of said owners.

This easement shall not apply to any Unit Building and the real property contained therein prior to the improvements therein and thereon having been completed by the Developer.

13.5 Right of Entry into Private Dwelling in Emergencies. In case of emergency originating in or threatening any units, regardless of whether the owner is present at the time of such emergency, the Board of Directors of Association, or any other person authorized by it, or the building manager or managing agent, shall have the right to enter such unit for the purpose of remedying or abating the cause of such emergency, and such right of entry shall be immediate, and to facilitate entry in the event of any such emergency, the owner of each unit, if required by the Association, shall deposit under the control of the Association a key to such unit.

13.6 Right of Entry for Maintenance of Common Property. Whenever it is necessary to enter any unit for the purpose of performing any maintenance, alteration, or repair to any portion

of the Common Property, the owner of each unit shall permit other owners by their representative, or the duly constituted and authorized agent of the Association, to enter such unit for such purpose, provided that such entry shall be made only at reasonable times and with reasonable advance notice.

13.7 Easement for Unintentional and Non-Negligent Encroachments. In the event that any unit shall encroach upon any Common Property for any reason not caused by the purposeful or negligent act of the unit owner or owners, or agents of such owner or owners, then an easement appurtenant to such unit shall exist for the continuance of such encroachment onto the Common Property for so long as such encroachment shall naturally exist; and, in the event that any portion of the Common Property shall encroach upon any unit, then an easement shall exist for the continuance of such encroachment of the Common Property into any unit for so long as such encroachment shall naturally exist.

13.8 Air Space. An exclusive easement for the use of the air space occupied by the condominium unit as it exists at any particular time and as the unit may lawfully be altered.

13.9 Easements or encroachments by the perimeter walls, ceilings, and floors surrounding each condominium unit.

13.10 Easement for overhanging troughs or gutters, downspouts, and the discharge therefrom of rainwater and the subsequent flow thereof over condominium units or any of them.

14. Association. In order to provide for the efficient and effective administration of this condominium by the owners of units, a non-profit corporation known and designated as BARWOOD CONDOMINIUM II ASSOCIATION, INC., has been organized under the laws of the State of Florida and said corporation shall administer the operation and management of this condominium, and undertake and perform all acts and duties incident thereto in accordance with the terms, provisions and conditions of this Declaration of Condominium, and in accordance with the terms of the Articles of Incorporation of the Association, its By-Laws and the rules and regulations promulgated by the Association from time to time.

14.1 Articles of Incorporation. A copy of the Articles of Incorporation of the Association is attached as Exhibit C.

14.2 The By-Laws of the Association shall be the by-laws of the condominium, a copy of which is attached as Exhibit D.

14.3 Limitation Upon Liability of Association. Notwithstanding, the duty of the Association to maintain and repair parts of the condominium property, the Association shall not be liable to unit owners for injury or damage, other than the cost of maintenance and repair, caused by any latent condition of the property to be maintained and repaired by the Association, or caused by the elements or other owners or persons.

14.4 Restraint Upon Assignment of Shares in Assets. The shares of members in the funds and assets of the Association cannot be assigned, hypothecated or transferred in any manner except as an appurtenance to his unit.

14.5 Approval or Disapproval of Matters. Whenever the decision of an owner is required upon any matter, whether or not the subject of an Association meeting, such decision shall be expressed in accordance with the By-Laws of the Association.

14.6 Membership. The record owners of all units in this condominium shall be members of the Association, and no other persons or entities shall be entitled to membership except for subscribers to the Articles. Membership shall be established by acquisition of ownership of fee title to or fee interest in a condominium parcel in said condominiums, whether by conveyance, devise, judicial decree, or otherwise subject to the provisions of the Declaration, and by the recordation among the Public Records of Palm Beach County, Florida, of the Deed or other instrument establishing the acquisition and designating the parcel affected thereby and by the delivery to the Association of a true copy of such recorded Deed or other instrument. The new owner designated in such deed or other instrument shall thereupon become a member of the Association, and the membership of the prior owner as to the parcel designated shall be terminated.

14.7 Voting. On all matters as to which the membership shall be entitled to vote, there shall be only one vote for each unit.

15. Insurance. The insurance other than title insurance which shall be carried upon the condominium property and the property of the unit owners shall be governed by the following provisions:

15.1 Authority to Purchase. All insurance policies upon the condominium property shall be purchased by the Association for the benefit of the Association and the unit owners and their mortgagees as their interest may appear, and provisions shall be made for the issuance of certificates or mortgagee endorsements to the mortgagees or unit owners. Such policies and endorsements shall be deposited with the Insurance Trustee. Unit owners may obtain insurance coverage at their own expense upon their personal property and for their personal liability and living expense. All policies purchased by the Association must be written by insurance companies authorized to do business in Florida, and with offices or agents in Florida.

15.2 Coverage.

1. Casualty. All buildings and improvements upon the land including units and all personal property of the Association included in the condominium property are to be insured in an amount equal to the maximum insurable replacement value,

excluding foundations and excavation costs as determined annually by the Board of Directors of the Association, and all such insurance must be obtained, if possible, from the same company. Such coverage affords protection against:

(a) Loss or damage by fire and other hazards covered by a standard extended coverage endorsement.

(b) Such other risks as from time to time shall be customarily covered with respect to buildings similar in construction, location and use, including but not limited to, vandalism and malicious mischief.

2. Public Liability in such amounts and with such coverage as shall be required by the Board of the Association, with cross-liability endorsements to cover liability of the unit owners as a group to a unit owner.

3. Workmen's Compensation as shall be required to meet the requirements of the law.

15.3 Premiums. Premiums for insurance policies purchased by the Association shall be paid by the Association.

15.4 Assured. All insurance policies purchased by the Association shall be for the benefit of the Association and the unit owners and their mortgagees as their interest may appear and shall provide that all proceeds covering casualty losses shall be paid to any national bank in Broward or Palm Beach Counties with trust powers as may be approved by the Board of Directors of the Association, which trustee is herein referred to as the Insurance Trustee. The Insurance Trustee shall not be liable for payments of premiums nor for the renewal or sufficiency of the policies nor for the failure to collect any insurance proceeds. The duty of the Insurance Trustee shall be to receive such proceeds as are paid and hold the same in trust for the purposes elsewhere stated herein and for the benefit of the unit owners and their mortgagees in the following shares, but which shares need not be set forth in the records of the Insurance Trustee.

1. Common Elements. Proceeds on account of common elements shall be held in as many undivided shares as there are units in each building, the shares of each unit owner being the same as his share in the common elements, as same are hereinabove stated.

2. Units. Proceeds on account of units shall be held in the following undivided shares:

(a) Partial destruction, when the buildings are to be restored, for the owners of damaged units in proportion to the cost of repairing the damage suffered by each unit owner.

(b) Total destruction of the buildings or when the buildings are to be restored to owners of all units in the buildings, each owner's share being in proportion to his share in the common elements appurtenant to his unit.

(c) Mortgagee. In the event a mortgagee endorsement has been issued as to a unit, the share of the unit owner shall be held in trust for the Mortgagee and the unit owner as their interests appear. In no event shall any mortgagee have the right to demand the application of insurance proceeds to any mortgage or mortgages which it may hold against units, except to such extent as said insurance proceeds may exceed the actual cost of repair or restoration of the damaged building or buildings, and no mortgagee shall have any right to participate in the determination as to whether or not improvements will be restored after casualty.

15.5 Distribution of Proceeds. Proceeds of insurance policies received by the Insurance Trustee shall be distributed to or for the benefit of the beneficial owners in the following manner:

1. Expense of the Trust. All expenses of the Insurance Trustee shall be first paid or provisions made therefore.

2. Reconstruction or repair. If the damage for which the proceeds are paid is to be repaired or reconstructed, the remaining proceeds shall be paid to defray the costs thereof as elsewhere provided. Any proceeds remaining after defraying such costs shall be distributed to the beneficial owners, remittances to unit owners and their mortgagees being payable jointly to them. This is a covenant for the benefit of any mortgagee of a unit and may be enforced by such mortgagee.

3. Failure to Reconstruct or Repair. If it is determined in the manner elsewhere provided that the damages for which the proceeds are paid shall not be reconstructed or repaired, the remaining proceeds shall be distributed to the beneficial owners, remittances to unit owners and their mortgagees being payable jointly to them. This is a covenant for the benefit of any mortgagee of a unit and may be enforced by such mortgagee.

4. Certificate. In making distribution to unit owners and their mortgagees, the Insurance Trustee may rely upon a certificate of the Association as to the names of the unit owners and their respective shares of the distributor.

5. Association as Agent. The Association is hereby irrevocably appointed agent for each unit owner to adjust all claims arising under insurance policies purchased by the Association.

16. Reconstruction or repair - After Casualty.

16.1 Determination to reconstruct or repair. If any part of the condominium property shall be damaged by casualty, whether or not it shall be reconstructed or repaired shall be determined in the following manner:

1. Common Element. If the damaged improvement is a common element, the damaged property to be reconstructed or repaired shall be determined in the manner elsewhere provided that the condominium shall be terminated.

2. Unit Buildings.

(a) Lesser damage. If the damaged improvement is a part of the unit buildings, and if units to which fifty (50%) percent of the common elements or appurtenances are found by the Board of Directors of the Association to be tenantable, the damaged property shall be reconstructed or repaired, unless within sixty (60) days after the casualty it is determined in the manner elsewhere provided that the condominium shall be terminated.

(b) Major damage. If the damaged improvement is part of the unit buildings, and if units to which more than fifty (50%) percent of the common elements are appurtenant are found by the Board of Directors of the Association to be not tenantable, then the damaged property will not be reconstructed or repaired and the condominium will be terminated as elsewhere provided, unless within sixty (60) days after the casualty the owners of seventy-five (75%) percent of the common elements agree in writing to such reconstruction and repair.

3. Certificate. The Insurance Trustee may rely upon a Certificate of the Association made by the President and Secretary to determine whether or not the damaged property is to be constructed or repaired.

16.2 Plans and Specifications. Any reconstruction or repair must be substantially in accordance with the plans and specifications for the original buildings, portions of which are attached hereto as exhibits, or if not, then according to plans and specifications approved by the Board of Directors of the Association, and if the damaged property is the unit buildings, by the owners of not less than seventy-five (75%) percent of the common elements, including the owners of all damaged units, which approval shall not be unreasonably withheld.

16.3 Responsibility. If the damage is only to those parts of a unit for which the responsibility of maintenance and repair is that of the unit owner, then the unit owner shall be responsible for reconstruction and repair after casualty. In all other instances the responsibility of reconstruction and casualty shall be that of the Association.

16.4 Estimates of Costs. Immediately after a casualty causing damage to property for which the Association has the responsibility of maintenance and repair, the Association shall obtain reliable and detailed estimates of the cost to rebuild or repair.

16.5 Assessments. If the proceeds of insurance are not sufficient to defray the estimated costs of reconstruction and

repair by the Association, or if at any time during the reconstruction and repair the funds for the payment of the costs hereof are insufficient, assessments shall be made against the unit owners who own the damaged units, and against all unit owners in the case of damage to common elements, in sufficient amounts to provide funds to pay the estimated costs. Such assessments against the unit owners for damage to units shall be in proportion to the cost of reconstruction and repair of their respective units. Such assessments on account of damage to common elements shall be in proportion to the owner's share in the common elements.

16.6 Deductible Provision. The funds necessary to cover any deductible amount under an insurance policy against which a claim is made shall be a common expense.

16.7 Construction Funds. The funds for payment of costs of reconstruction and repair after casualty which shall consist of proceeds of insurance held by the Insurance Trustee and funds collected by the Association from assessments against unit owners, shall be disbursed in payment of such costs in the following manner:

1. Association. If costs of reconstruction and repair which are the responsibility of the Association are more than Five Thousand (\$5,000.00) Dollars, then the sums paid upon assessments to meet such costs shall be deposited by the Association with the Insurance Trustee. In all other cases the Association shall hold the sums paid upon such assessments and disburse the same in payment of the costs of reconstruction and repair.

2. Insurance Trustee. The proceeds of insurance collected on account of a casualty, and the sums deposited with the Insurance Trustee by the Association from collections of assessments against unit owners on account of such casualty, shall constitute a construction fund which shall be disbursed in payment of the costs of reconstruction and repair in the following manner:

(a) Unit owner. The portion of insurance proceeds representing damage for which the responsibility of reconstruction and repair lies with the unit owner shall be paid by the Insurance Trustee to the unit owner, or if there is a mortgagee endorsement, then to the unit owner and the mortgagee jointly.

(b) Association - Lesser damage. If the amount of the estimated costs of reconstruction and repair which is the responsibility of the Association is less than Five Thousand (\$5,000.00) Dollars, then the construction fund shall be disbursed in payment of such costs upon the order of the Association; provided, however, that upon request to the Insurance Trustee by a mortgagee which is a beneficiary of an insurance policy the proceeds of which are included in the construction fund, such

fund shall be disbursed in the manner hereafter provided for the reconstruction and repair of major damage.

(c) Association - Major damage. If the amount of the estimated costs of reconstruction and repair which is the responsibility of the Association is more than Five Thousand (\$5,000.00) Dollars, then the construction fund shall be disbursed in payment of such costs in the manner required by the Board of Directors of the Association and upon approval of an architect qualified to practice in the State of Florida and employed by the Association to supervise the work.

(d) Surplus. It shall be presumed that the first monies disbursed in payment of costs of reconstruction and repair shall be from insurance proceeds. If there is a balance in a construction fund after payment of all costs of the reconstruction and repair for which the fund is established, such balance shall be distributed to the beneficial owners of the fund in the manner elsewhere stated; except, however, that the part of a distribution to a beneficial owner which is not in excess of assessments paid by such owner into the construction fund shall not be made payable to any mortgage.

(e) Certificate. Notwithstanding the provisions herein, the Insurance Trustee shall not be required to determine whether or not sums paid by unit owners upon assessments shall be deposited by the Association with the Insurance Trustee, not to determine whether the disbursements from the construction fund are to be upon the order of the Association or upon approval of an architect or otherwise, nor whether a disbursement is to be made from the construction fund nor to determine whether surplus funds to be distributed are less than the assessment paid by owners. Instead, the Insurance Trustee may rely upon a Certificate of the Association made by its President and Secretary as to any or all of such matters and stating that the sums to be paid are due and properly payable and stating the name of the payee and the amount to be paid; provided, that when a mortgagee is herein required to be named as payee, the Insurance Trustee shall also name the mortgagee as payee of any distribution of insurance proceeds to a unit owner and further provided that when the Association or a mortgagee which is the beneficiary of an insurance policy the proceed of which are included in the construction funds, so requires, the approval of an architect named by the Association shall first be obtained by the Association upon disbursements in payment of costs of reconstruction and repair.

17. Assessments.

The making and collecting of assessments against unit owners for common expenses shall be pursuant to the By-Laws and subject to the following provisions:

17.1 Share of the Common Expenses. Each unit owner shall be liable for a proportionate share of the common expenses and shall share of the common surplus, such shares being heretofore set forth. A unit owner, regardless of how title is acquired, including without limitation a purchaser at a judicial sale, shall be liable for all assessments coming due while he is the

owner of a unit. In a voluntary conveyance the grantee shall be jointly and severally liable with the grantor for all unpaid assessments against the latter for his share of the common expenses up to the time of such voluntary conveyance, without prejudice to the rights of the grantee to recover from the grantor the amounts paid by the grantee therefore.

17.2 Non-Waiver. The liability for assessments may not be avoided by waiver of the use of enjoyment of any common element or by the abandonment of the unit for which the assessment is made.

17.3 Interest, Application of Payments. Assessments and installments on such assessments paid on or before ten days after date when due shall not bear interest, but all sums not paid on or before ten days after date when due shall bear interest at the rate of ten (10%) percent per annum from the date when due until paid. All payments upon account shall be first applied to interest and then to the assessment payment first due.

17.4 Lien for Assessments. The Association shall have a lien on each condominium parcel for any unpaid assessments, together with interest thereon, against the owner of such condominium parcel, together with a lien on all tangible personal property located within the unit, except that such lien upon the aforesaid tangible personal property shall be subordinate to prior bona fide liens of record. Reasonable attorneys' fees incurred by the Association incident to the collection of such assessment for the enforcement of such lien, together with all sums advanced and paid by the Association for taxes and payment on account of superior mortgages, liens or encumbrances which may be required to be advanced by the Association in order to preserve and protect its lien shall be payable by the unit owner and secured by such lien. The Association's liens shall also include those sums advanced on behalf of each unit owner in payment of his obligation for use, charges and operation costs likewise referred to as common expenses.

17.5 Collection and foreclosure. The Board of Directors may take such action as they deem necessary to collect assessments of the Association by personal action, or by enforcing and foreclosing said lien, and may settle and compromise the same, if in the best interests of the Association. Said lien shall be effective as and in the manner provided for by the Condominium Act, and shall have the priorities established by said Act. The Association shall be entitled to bid at any sale held pursuant to a suit to foreclose an assessment lien, and to apply as a cash credit against its bid, all sums due the Association covered by the lien enforced. In case of such foreclosure, the unit owner shall be required to pay a reasonable rental for the condominium parcel and the plaintiff in such foreclosure shall be entitled to the appointment of a Receiver to collect same from the unit owner and/or occupant.

17.6 Liability of Mortgage, Lienor or Judicial Sale Purchaser for Assessment. Where the mortgagee of an institutional mortgage of record or other purchaser of a unit, obtains title to a condominium parcel as a result of foreclosure of the institutional mortgage, or when an institutional mortgagee or record accepts a deed to said condominium parcel in lieu of foreclosure, such acquiror of title, his successors and assigns, shall not be liable for the share of common expenses or assessments by the Association pertaining to such condominium parcel, or chargeable to the former unit owner of such parcel which became due prior to acquisition of title as a result of the foreclosure, or the acceptance of such deed in lieu of foreclosure. Such unpaid share of common expenses or assessments shall be deemed to be common expenses collectible from all of the unit owners, including such expenses collectible from all of the owners, including such acquiring title, whether as a result of foreclosure, or by acceptance of a deed to the condominium parcel in lieu of foreclosure, the new owner by virtue of the acquiring of such title shall forthwith become liable for payment of the common expenses and such other expenses as may be chargeable to the owner of a condominium unit hereunder. However, any person who acquires any interest in a unit, except through foreclosure of an institutional mortgage of record, as specifically provided in the paragraph immediately preceding, including without limitation, persons acquiring title by operation of law, including persons who become purchasers at judicial sales, shall not be entitled to occupancy of the unit or enjoyment of the common elements until such time as all unpaid assessments due and owing by the former owner have been paid.

17.7 Assignment of Claim and Lien Rights. The Association, acting through its Board of Directors, shall have the right to assign its claim and lien rights for the recovery of any unpaid assessment to the Developer, or to any unit owner or group of unit owners, or to any third party.

17.8 Unpaid Assessments - Certificates. Any unit owner shall have the right to require from the Association a certificate showing the amount of unpaid assessments against him with respect to his condominium parcel. The holder of a mortgage or other lien shall have the same right as to any condominium parcel upon which he has a lien. Any person other than the owner who relies upon such certificate shall be protected thereby.

18. Compliance and Default. Each unit owner shall be governed by and shall comply with the terms of the Declaration of Condominium, By-Laws and rules and regulations adopted pursuant thereto and said documents and rules and regulations as they may be amended from time to time. Failure of Unit owners to comply therewith shall entitle the Association or other unit owners to the following relief in addition to the remedies provided by the Condominium Act.

18.1 Negligence. A unit owner shall be liable for the expense of any maintenance, repair or replacement rendered necessary by his act, neglect or carelessness or by that of any member of his family or his or their guests, employees, or lessee, but only to the extent that such expense is not met by the proceeds of insurance carried by the Association. Such liability shall include any increase in fire insurance rates occasioned by use, misuse, occupancy or abandonment of a unit or its appurtenances, or of the common elements.

18.2 Costs and Attorneys' Fees. In any proceeding arising because of an alleged failure of a unit owner to comply with the terms of the Declaration, By-Laws and rules and regulations adopted pursuant thereto, and said documents and regulations as they may be amended from time to time, the prevailing party shall be entitled to recover the costs of the proceeding and such reasonable attorneys' fees as may be awarded by the court.

18.3 No waiver of rights. The failure of the Association or any unit owner to enforce covenants, restrictions or other provision of the Condominium Act, this Declaration, the By-Laws, or the regulations adopted pursuant thereto, shall not constitute waiver of the right to do so thereafter.

19. Amendment of Declaration. Except as elsewhere provided, otherwise, this Declaration of Condominium may be amended in the following manner:

19.1 Notice. Notice of the subject matter of a proposed amendment shall be included in the notice of any meeting at which a proposed amendment is considered.

19.2 Resolution of Adoption. A resolution adopting a proposed amendment may be proposed by either the Board of Directors of the Association or by the members of the Association. Directors and members not present in person or by proxy at the meeting considering the amendment may express their approval in writing, providing such approval is delivered to the Secretary at or prior to the meeting. Except as elsewhere provided, such approvals must be either by:

1. Not less than seventy-five (75%) percent of the votes of the entire membership of the Board of Directors and by not less than seventy-five (75%) percent of the votes of the entire membership of the Association; or

2. Not less than eighty (80%) percent of the votes of the entire membership of the Association;

3. Until the Developer transfers control of the Association to the unit owners, only by all of the Directors, provided the amendment does not increase the number of the units or alter the boundaries of the common elements.

19.3 Proviso. No amendment shall discriminate against any

unit owner or against any unit, or class or group of units, unless the unit owners so affected and their institutional mortgagees shall consent; and, no amendment shall change any unit or the share in the common elements, and other of its appurtenances or increase the owner's share of the common elements, and other of its appurtenances or increase the owner's share of the common expenses except as hereinabove provided, unless the owner of the unit concerned and all such mortgagees as first above recited shall join in the execution of the amendment. Neither shall an amendment make any change in the section entitled "Insurance" nor in the section entitled "Reconstruction or Repair - After Casualty" unless the record owner of all mortgages upon the condominium shall join in the execution of the amendment; nor shall any amendment of this Declaration make any change which would in any way affect any of the rights, privileges, powers and options of the Developer unless the Developer shall join in the execution of such amendment.

19.4 Execution and Recording. A copy of each amendment shall be attached to a certificate certifying that the amendment was duly adopted, which certificate shall be executed by the officers of the Association with the formalities of a deed. The amendment shall be effective when such certificate and copy of the amendment are recorded in the public records of Palm Beach County, Florida.

20. Barwood Condominium Improvement Association, Inc. In order to operate and maintain the recreational facilities for each unit owner of Barwood Condominium, all phases, the Barwood Condominium Improvement Association, Inc., has been organized under the laws of the State of Florida and said corporation shall administer the areas subject to the Declaration of Covenants and Restrictions for Improvement and Maintenance in accordance with the terms and provisions of the Declaration of Condominium, the Articles of Incorporation of the Barwood Condominium Improvement Association, Inc., the By-Laws of the Barwood Condominium Improvement Association, Inc., and the Declaration of Covenants and Restrictions for Improvement and Maintenance encumbering the real property submitted to condominium form of ownership by this Declaration of Condominium.

20.1 Articles of Incorporation. A copy of the Articles of Incorporation of the Barwood Condominium Improvement Association, Inc., is attached hereto and made a part hereof as Exhibit H.

20.2 The By-Laws of the Barwood Condominium Association Inc., are attached hereto and made a part hereof as Exhibit J.

20.3 Restraint Upon Assignment of Shares in Assets. The shares of members in the funds and assets of the Barwood Condominium Improvement Association, Inc., cannot be assigned, hypothecated or transferred in any manner except as an appurtenance to his unit.

20.4 Membership. The record owners of all units in Barwood Condominium II, a Condominium, shall be members in the Barwood Condominium Improvement Association, Inc., as provided in the Articles of Incorporation, and By-Laws of the Barwood Condominium Improvement Association, Inc., and the Declaration of Covenants and Restrictions for Improvement and Maintenance. Membership shall be established by acquisition of ownership of fee title or fee interest in a condominium parcel in said condominium, whether by conveyance, devise, judicial decree, or otherwise, subject to the provisions of the Declaration, and by the recordation among the Public Records of Palm Beach County, Florida, of the Deed or other instrument establishing the acquisition and designating the parcel affected thereby and by the delivery to the Barwood Condominium Improvement Association, Inc., of a true copy of such recorded Deed or other instrument. The new owner designated in such deed or other instrument shall thereupon become a member of the Barwood Condominium Improvement Association, Inc., and the membership of the prior owner as to the parcel designated shall be terminated.

20.5 Additional Members. The record owners of all units in Barwood Condominium, Phases I through 6, shall be members in the Barwood Condominium Improvement Association, Inc., as each additional unit building is constructed and units therein sold. The commitment and development plan for phase construction is attached hereto and made a part hereof and identified as paragraph 14 to the Prospectus.

20.6 Voting. On all matters as to which the membership shall be entitled to vote, there shall be only one vote for each unit.

21. Assessments of Barwood Condominium Improvement Association, Inc. The making and collecting of assessments against unit owners shall be pursuant to the Articles of Incorporation and the By-Laws of Barwood Condominium Improvement Association, Inc., and the Declaration of Covenants and Restrictions for Improvement and Maintenance.

21.1 Share of the Assessment. Each unit owners shall be liable for an assessment. A unit owner, regardless of how title is acquired, including without limitation a purchaser at a judicial sale, shall be liable for all assessments coming due while he is the owner of a unit. In a voluntary conveyance, the grantee shall be jointly and severally liable with the grantor for all unpaid assessments against the latter for his share of the common expenses up to the time of such voluntary conveyance, without prejudice to the rights of grantee to recover from the grantor the amounts paid by the grantee therefore.

21.2 Non-Waiver. The liability for assessments may not be avoided by waiver of the use of enjoyment or by abandonment of the unit for which the assessment is made.

21.3 Interest, Application of Payments. Assessments shall be paid when due and all sums not paid when due shall bear interest at the rate of ten (10%) percent per annum from the date when due until paid. All payments upon account shall be first applied to interest and then to the assessment payment first due.

21.4 Lien for Assessment. Barwood Condominium Improvement Association, Inc., shall have a lien on each condominium parcel for any unpaid assessments, together with interest thereon, against the owner of such condominium parcel, together with a lien on all tangible personal property located within the unit, except that such lien upon the aforesaid tangible personal property shall be subordinate to prior bona fide liens of record. Reasonable attorneys' fees incurred by the Barwood Condominium Improvement Association, Inc., incident to the collection of such assessment for the enforcement of such lien, together with all sums advanced and paid by the Barwood Condominium Improvement Association, Inc., in order to preserve and protect its lien shall be payable by the unit owner and secured by such lien. The Barwood Condominium Improvement Association, Inc.'s liens shall also include those sums advanced on behalf of each unit owner in payment of his obligations.

21.5 Collection and foreclosure. The Board of Directors of Barwood Condominium Improvement Association, Inc., may take such action as they deem necessary to collect assessments of the Barwood Condominium Improvement Association, Inc., by personal action, or by enforcing and foreclosing said lien, and may settle and compromise the same, if in the best interest of the Barwood Condominium Improvement Association, Inc. Said lien shall be of equal dignity and priority as the lien of the Barwood Condominium II Association, Inc. The Barwood Condominium Improvement Association, Inc., shall be entitled to bid at any sale held pursuant to a suit to foreclose an assessment lien, and to apply as a cash credit against its bid, all sums due the Barwood Condominium Improvement Association, Inc., covered by the lien enforced. In case of such foreclosure, the unit owner shall be required to pay a reasonable rental for the condominium parcel and the plaintiff in such foreclosure shall be entitled to the appointment of a Receiver to collect same from the unit owner and/or occupant.

21.6 Liability of Mortgagee, Lienor or Judicial Sale Purchaser for Assessment. Where the mortgagee of an institutional mortgage of record or other purchaser of a unit obtains title to a condominium parcel as a result of foreclosure of the institutional mortgage, or when an institutional mortgagee of record accepts a deed to said condominium parcel in lieu of foreclosure, such acquirer of title, his successors and assigns, shall not be liable for assessment by the Barwood Condominium Improvement Association, Inc., pertaining to such condominium parcel, or

chargeable to the former unit owner of such parcel which became due prior to acquisition of title as a result of the foreclosure, or the acceptance of such deed in lieu of foreclosure. The new owner by virtue of the acquiring of such title shall forthwith become liable for payment of the assessments, and such other expenses as may be chargeable to the owner of a condominium unit hereunder. However, any person who acquires an interest in a unit, except through foreclosure of an institutional mortgage of record, as specifically provided in the paragraph immediately preceding, including without limitation persons acquiring title by operation of law, including persons who became purchasers at judicial sales, shall not be entitled to occupancy of the unit until such time as all unpaid assessments due and owing by the former owner have been paid to the Barwood Condominium Improvement Association, Inc.

21.7 Assignment of Claim and Lien Rights. The Barwood Condominium Improvement Association, Inc., acting through its Board of Directors, shall have the right to assign its claim and lien rights for the recovery of any unpaid assessment to the Developer, or to any unit owner or group of unit owners, or to any condominium association, or to any third party.

21.8 Unpaid Assessments - Certificate. Any unit owner shall have the right to require from the Barwood Condominium Improvement Association, Inc., a certificate showing the amount of unpaid assessments against him with respect to this condominium parcel. The holder of a mortgage or other lien shall have the same right as to any condominium parcel upon which he has a lien. Any person other than the owner who relies upon such certificate shall be protected thereby.

22. Developer's Units and Privileges.

22.1 The Developer, at the time of filing of this Declaration, is the owner of all of the real property, individual units, and appurtenances comprising this condominium. Therefore, the Developer, until all of the units have been sold and closed, shall be irrevocably empowered, notwithstanding anything herein to the contrary, to sell, lease or rent units to any person approved by the Developer. Said Developer shall have the right to transact upon the condominium property any business necessary to consummate the sale of units, including, but not limited to the right to maintain models, have signs, staff employees, maintain offices, use the common elements and show units. Any sales office, signs, fixtures or furnishings or other tangible personal property belonging to the Developer shall not be considered common elements and shall remain the property of the Developer.

22.2 Notwithstanding anything in this Declaration to the contrary, during the period of time which the Developer guarantees the budget attached hereto, as Projected Operating Budget -1977 the units owned by the Developer shall not be subject to assessments as provided for in this Declaration of Condominium. Thereafter, Developer may at it's sole option, be assessed and pay to the

Association in lieu of a budget guarantee thereof, the sums required to be paid by Developer as assessments pursuant to the Condominium Act. The actual operating expenditures, for this purpose, shall not include any reserves, or capital expenditures.

22.3 Notwithstanding anything herein to the contrary, the provisions of this section shall not be subject to any amendment until the Developer has sold all of the units in Barwood Condominium I, a Condominium.

23. Termination. The condominium may be terminated in the following manner in addition to the manner provided in the Condominium Act:

23.1 Destruction. In the event that it is determined in the manner elsewhere provided that the unit buildings shall not be reconstructed because of major damage, the condominium plan of ownership will be thereby terminated without agreement.

23.2 Agreement. The condominium may be terminated by the approval in writing of all of the owners of the units therein and by all record owners of mortgages thereon. If the proposed termination is submitted to a meeting of the members of the Association, the notice of which meeting gives notice of the proposed termination, and if the approval of the owners of not less than seventy-five (75%) percent of the common elements, and of the record owners of all mortgages upon the units are obtained in writing not later than thirty (30) days from the date of such meeting, then the approving owners shall have an option to buy all of the units of the other owners for the period ending on the sixtieth (60th) day from the date of such meeting. Such approvals shall be irrevocable until the expiration of the option, and if the option is exercised, the approval shall be irrevocable. Such option shall be upon the following terms:

1. Exercise of Option. The option shall be exercised by delivery or mailing by certified mail to each of the record owners of the units to be purchased, of an agreement to purchase signed by the record owners of units who will participate in the purchase. Such agreement shall indicate which units will be purchased by each participating owner and shall provide for the purchase of all of the units owned by owners not approving the termination, and the effect of said agreement shall be to create a separate contract between each seller and his purchaser.

2. Price. The sale price for each unit shall be the fair market value determined by agreement between the seller and the purchaser within thirty (30) days from the delivery or mailing of such agreement, and in the absence of agreement as to price, it shall be determined by arbitration in accordance with the then existing rules of the American Arbitration Association, except that the arbitrators shall be two appraisers appointed by the American Arbitration Association who shall base their determination upon an average of their appraisals of the unit; and, a judgment of specific performance of the sale upon the award rendered by the arbitrators may be entered in any court of competent jurisdiction.

diction. The expense of the arbitration shall be paid by the purchaser.

3. Payment. The purchase price shall be paid in cash.

4. Closing. The sale shall be closed within thirty (30) days following the determination of the sale price.

23.3 Certificate. The termination of the condominium, unit owners shall own the condominium property and all assets of the Association as tenants in common in undivided shares, and their respective mortgagees and lienors shall have mortgages and liens upon the respective undivided shares of the unit owners. Such undivided shares of the unit owners shall be the same as the undivided shares in the common elements appurtenant to the owners' unit prior to the termination.

23.5 Amendments. This section concerning termination cannot be amended without consent of all unit owners and all record owners of mortgages upon units.

24. Covenants. All provisions of the Declaration shall be construed to be covenants running with the land and with every part thereof and interest therein, and every unit owner and claimant of the land or any part thereof or interest therein, and his heirs, executors and administrators, successors and assigns, shall be bound by all of the provisions of the Declaration.

25. Severability and Invalidity.

25.1 The invalidity in whole or in part of any covenant or restrictions of any section, subsection, sentence, clause, phrase, or word, or other provisions of the Declaration of Condominium, the Articles of Incorporation, By-Laws, Rules and Regulations of the Association shall not affect the validity of the remaining portions which shall remain in full force and effect.

25.2 In the event any court shall hereafter determine that any provision of the Declaration of Condominium, as originally drafted, or as amended, violate the rule against perpetuities or any other rules of law because of the duration of the period involved, and period specified in the Declaration shall not thereby become invalid, but instead shall be reduced to the maximum period allowed under such rules of law, and for such purpose measuring lives shall be those of the incorporators of the Association.

26. Interpretation. The provisions of this Declaration shall be liberally construed to effectuate its purposes of creating a plan for the operation of a condominium in accordance with the laws made and provided for same: Chapter 718 of the Florida Statutes.

IN WITNESS WHEREOF, the Developer, BARWOOD DEVELOPMENT CORPORATION, has executed this Declaration of Condominium on this 28 day of JUNE, 1977.

Signed, sealed and delivered in the presence of:

John B. Sparling

John H. Sparling

BARWOOD DEVELOPMENT CORPORATION

By: George H. Sparling
GEORGE H. SPARLING
President

ATTEST: Barbara M. Sparling
BARBARA M. SPARLING
Secretary

(Corporate Seal)

STATE OF FLORIDA)
: SS
COUNTY OF PALM BEACH)

On this day personally appeared before me, the undersigned authority, GEORGE H. SPARLING and BARBARA M. SPARLING, as President and Secretary, respectively of BARWOOD DEVELOPMENT CORPORATION, a Florida corporation, and they acknowledged before me that they executed the foregoing Declaration of Condominium as such officers of said corporation and that they affixed thereto the official seal of said corporation and that the foregoing instrument is the act and deed of said corporation.

WITNESS my hand and official seal at Boca Raton, said County and State last aforesaid, this 28 day of JUNE, 1977.

John B. Sparling
NOTARY PUBLIC
NOTARY PUBLIC STATE OF FLORIDA
MY COMMISSION EXPIRES JULY 27 1980
BONDED THRU CINCINNATI INS. CO. OF OHIO
STATE OF FLORIDA

JOINDER OF MORTGAGE

Boca Raton Federal Savings & Loan Association of Boca Raton, Florida, as Mortgagee of the land submitted to condominium hereby joins in the Declaration of Condominium for BARWOOD CONDOMINIUM II, A CONDOMINIUM, to consent to the submission of said land to the condominium form of ownership.

EXECUTED this 28th day of June, 1977.

Signed, sealed and delivered
in the presence of :

Bernadette A. Veneki

Gilda H. Smalley

STATE OF FLORIDA)
 : ss
COUNTY OF PALM BEACH)

PERSONALLY APPEARED before me, the undersigned authority,
Arthur G. Mantell as Vice President
of the Boca Raton Federal Savings & Loan Association of Boca
Raton, Florida, who after first being duly sworn, deposes and
says that he executed the foregoing Joinder of Mortgage for
the uses and purposes therein expressed as such officer.

WITNESS my hand and official seal in the aforesaid county
and state, this 28th day of June, 1977.

Gilda H. Smalley
NOTARY PUBLIC

NOTARY PUBLIC STATE OF FLORIDA AT LARGE
MY COMMISSION EXPIRES DEC. 8 1980
BY WOLF TRU GENERAL INS. UNDERWRITERS

2A

EXHIBIT A
SURVEY, PLOT PLAN AND ELEVATION
DECLARATION OF CONDOMINIUM
FOR
BARWOOD CONDOMINIUM II, A CONDOMINIUM
PALM BEACH COUNTY, FLORIDA

EXHIBIT "A"

PAGE
ANNEXED TO
AND EXPRESSLY MADE A PART OF
"DECLARATION OF CONDOMINIUM"
BARWOOD CONDOMINIUM II
BY BARWOOD DEVELOPMENT CORPORATION
DATED 7th day of July, 1977

LEGEND

- 1. Stair
- 2. Elevator
- 3. Common Area
- 4. Enclosed Area
- 5. Unenclosed Area
- 6. Other

COMMON ELEMENTS

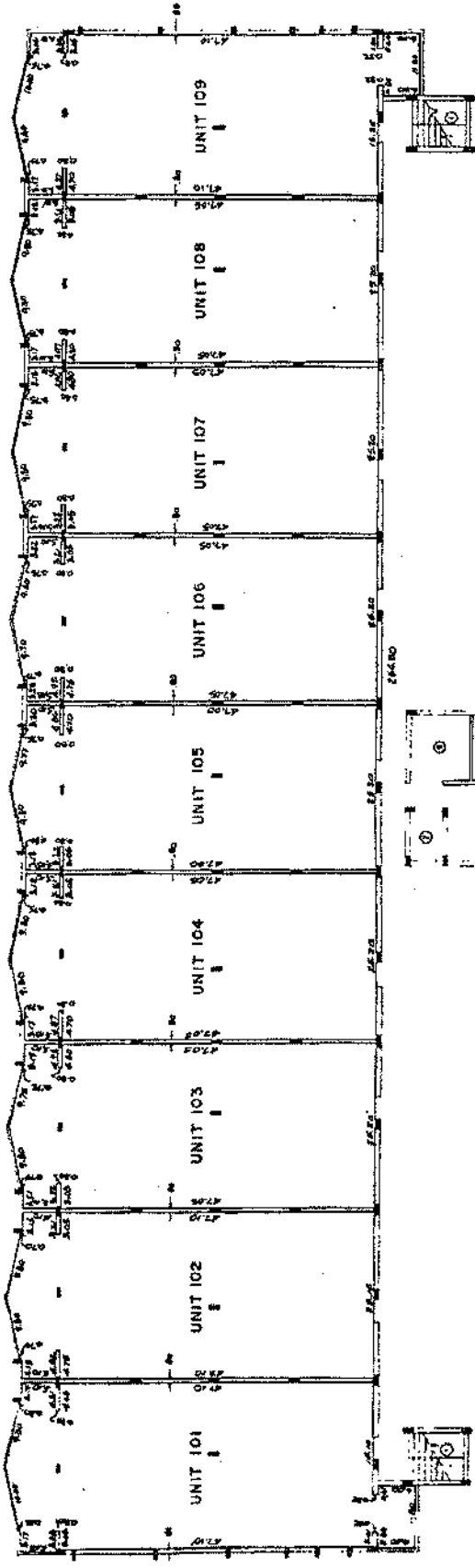
Common elements means the portions of the Condominium property owned in fee simple by the Condominium Corporation, including but not limited to, hallways, stairs, elevators, and other appurtenant areas, and other common areas.

NOTES

Units have been shown on this floor plan in accordance with the Declaration of Condominium II, as amended, and the Condominium Act, Chapter 71, Florida Statutes, as amended. The units are shown in accordance with the Declaration of Condominium II, as amended, and the Condominium Act, Chapter 71, Florida Statutes, as amended. The units are shown in accordance with the Declaration of Condominium II, as amended, and the Condominium Act, Chapter 71, Florida Statutes, as amended.

DESCRIPTION OF APARTMENTS & COMMON ELEMENTS

For description of Apartments and appurtenant areas, see the Declaration of the Condominium II.



CERTIFICATION

I, the undersigned, being a duly qualified and licensed Surveyor in the State of Florida, do hereby certify that the foregoing is a true and correct copy of the Declaration of Condominium II, as amended, and the Condominium Act, Chapter 71, Florida Statutes, as amended, and that the same have been recorded in the public records of the State of Florida.

1ST FLOOR

[Signature]
Surveyor
My Comm. Exp. 12/31/80
State of Florida

THE BARWOOD CONDOMINIUM II, BUILDING 1	
FOR BARWOOD DEVELOPMENT CORPORATION	
11119 BARWOOD LANE NORTH	
BOCA RATON, FLORIDA	
FOR BARWOOD DEVELOPMENT CORPORATION	
JONNIE A. GRANT JR.	
BOCA RATON, FLORIDA	
DATE	7/7/77
BY	JONNIE A. GRANT JR.
FOR	BARWOOD DEVELOPMENT CORPORATION

DATE 7th DAY OF July, 1977

NOTES

[illegible]

DESCRIPTION OF APARTMENTS & COMMON ELEMENTS

For identification of specimens, see the following table.

COMMON ELEMENTS

Cynthia Elamette makes the points in the Constitution properly set forth in the rules and in addition Chapter 21 other items added to the Constitution as well as the amendments in the Constitution that, including but not limited to, transfers, MCO's, elections, appointments and supply of troops, that the House of Representatives

LEGEND

- | | | |
|-----|---------|-----|
| 1 | 2014-15 | 1 |
| 2 | 2015-16 | 2 |
| 3 | 2016-17 | 3 |
| 4 | 2017-18 | 4 |
| 5 | 2018-19 | 5 |
| 6 | 2019-20 | 6 |
| 7 | 2020-21 | 7 |
| 8 | 2021-22 | 8 |
| 9 | 2022-23 | 9 |
| 10 | 2023-24 | 10 |
| 11 | 2024-25 | 11 |
| 12 | 2025-26 | 12 |
| 13 | 2026-27 | 13 |
| 14 | 2027-28 | 14 |
| 15 | 2028-29 | 15 |
| 16 | 2029-30 | 16 |
| 17 | 2030-31 | 17 |
| 18 | 2031-32 | 18 |
| 19 | 2032-33 | 19 |
| 20 | 2033-34 | 20 |
| 21 | 2034-35 | 21 |
| 22 | 2035-36 | 22 |
| 23 | 2036-37 | 23 |
| 24 | 2037-38 | 24 |
| 25 | 2038-39 | 25 |
| 26 | 2039-40 | 26 |
| 27 | 2040-41 | 27 |
| 28 | 2041-42 | 28 |
| 29 | 2042-43 | 29 |
| 30 | 2043-44 | 30 |
| 31 | 2044-45 | 31 |
| 32 | 2045-46 | 32 |
| 33 | 2046-47 | 33 |
| 34 | 2047-48 | 34 |
| 35 | 2048-49 | 35 |
| 36 | 2049-50 | 36 |
| 37 | 2050-51 | 37 |
| 38 | 2051-52 | 38 |
| 39 | 2052-53 | 39 |
| 40 | 2053-54 | 40 |
| 41 | 2054-55 | 41 |
| 42 | 2055-56 | 42 |
| 43 | 2056-57 | 43 |
| 44 | 2057-58 | 44 |
| 45 | 2058-59 | 45 |
| 46 | 2059-60 | 46 |
| 47 | 2060-61 | 47 |
| 48 | 2061-62 | 48 |
| 49 | 2062-63 | 49 |
| 50 | 2063-64 | 50 |
| 51 | 2064-65 | 51 |
| 52 | 2065-66 | 52 |
| 53 | 2066-67 | 53 |
| 54 | 2067-68 | 54 |
| 55 | 2068-69 | 55 |
| 56 | 2069-70 | 56 |
| 57 | 2070-71 | 57 |
| 58 | 2071-72 | 58 |
| 59 | 2072-73 | 59 |
| 60 | 2073-74 | 60 |
| 61 | 2074-75 | 61 |
| 62 | 2075-76 | 62 |
| 63 | 2076-77 | 63 |
| 64 | 2077-78 | 64 |
| 65 | 2078-79 | 65 |
| 66 | 2079-80 | 66 |
| 67 | 2080-81 | 67 |
| 68 | 2081-82 | 68 |
| 69 | 2082-83 | 69 |
| 70 | 2083-84 | 70 |
| 71 | 2084-85 | 71 |
| 72 | 2085-86 | 72 |
| 73 | 2086-87 | 73 |
| 74 | 2087-88 | 74 |
| 75 | 2088-89 | 75 |
| 76 | 2089-90 | 76 |
| 77 | 2090-91 | 77 |
| 78 | 2091-92 | 78 |
| 79 | 2092-93 | 79 |
| 80 | 2093-94 | 80 |
| 81 | 2094-95 | 81 |
| 82 | 2095-96 | 82 |
| 83 | 2096-97 | 83 |
| 84 | 2097-98 | 84 |
| 85 | 2098-99 | 85 |
| 86 | 2099-00 | 86 |
| 87 | 2100-01 | 87 |
| 88 | 2101-02 | 88 |
| 89 | 2102-03 | 89 |
| 90 | 2103-04 | 90 |
| 91 | 2104-05 | 91 |
| 92 | 2105-06 | 92 |
| 93 | 2106-07 | 93 |
| 94 | 2107-08 | 94 |
| 95 | 2108-09 | 95 |
| 96 | 2109-10 | 96 |
| 97 | 2110-11 | 97 |
| 98 | 2111-12 | 98 |
| 99 | 2112-13 | 99 |
| 100 | 2113-14 | 100 |

CERTIFICATION

[illegible]

2ND FLOOR

[illegible]

PAGE

ANNEXED TO
AND EXPRESSLY MADE A PART OF
"DECLARATION OF CONDOMINIUM"
BARWOOD CONDOMINIUM II
BY BARWOOD DEVELOPMENT CORPORATION

REC'D 7th day of July 1977

DESCRIPTION OF APARTMENTS & COMMON ELEMENTS

The Federation of Agriculture and Horticulture has the pleasure of presenting to the members of the Association...

LEGEND

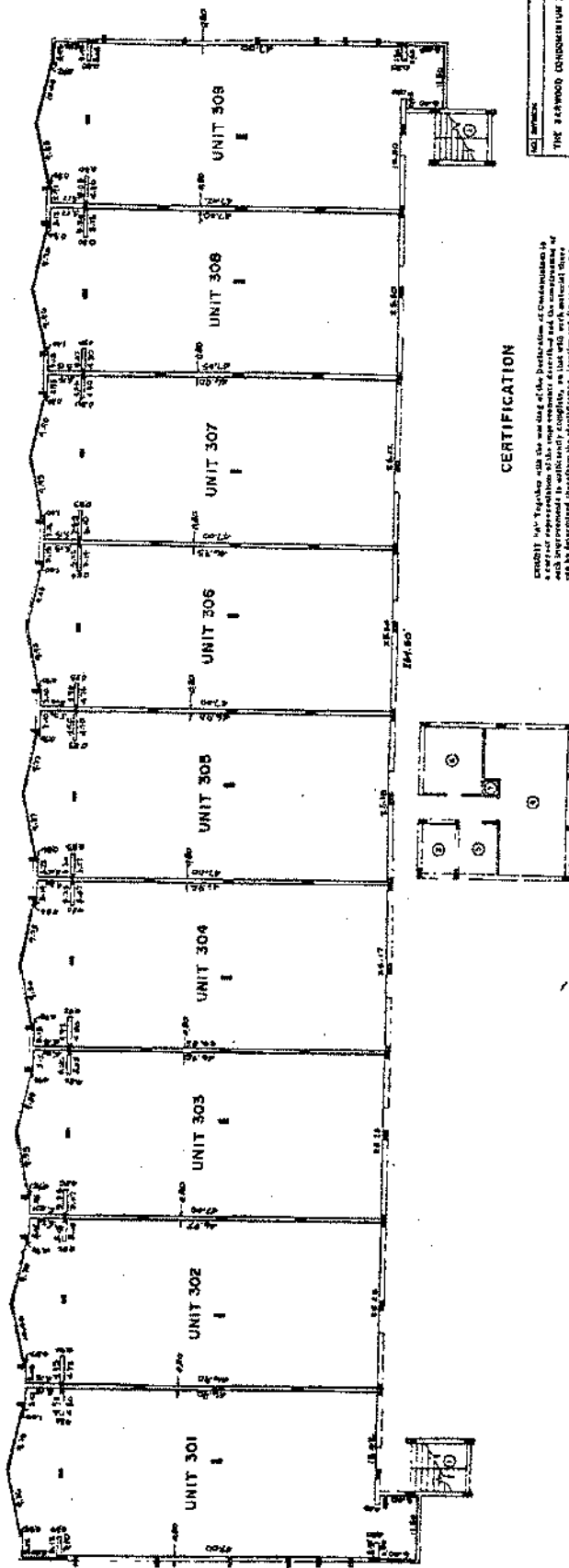
- 1941-1942
 1943-1944
 1945-1946
 1947-1948
 1949-1950
 1951-1952
 1953-1954
 1955-1956
 1957-1958
 1959-1960
 1961-1962
 1963-1964
 1965-1966
 1967-1968
 1969-1970
 1971-1972
 1973-1974
 1975-1976
 1977-1978
 1979-1980
 1981-1982
 1983-1984
 1985-1986
 1987-1988
 1989-1990
 1991-1992
 1993-1994
 1995-1996
 1997-1998
 1999-2000
 2001-2002
 2003-2004
 2005-2006
 2007-2008
 2009-2010
 2011-2012
 2013-2014
 2015-2016
 2017-2018
 2019-2020
 2021-2022
 2023-2024
 2025-2026
 2027-2028
 2029-2030
 2031-2032
 2033-2034
 2035-2036
 2037-2038
 2039-2040
 2041-2042
 2043-2044
 2045-2046
 2047-2048
 2049-2050
 2051-2052
 2053-2054
 2055-2056
 2057-2058
 2059-2060
 2061-2062
 2063-2064
 2065-2066
 2067-2068
 2069-2070
 2071-2072
 2073-2074
 2075-2076
 2077-2078
 2079-2080
 2081-2082
 2083-2084
 2085-2086
 2087-2088
 2089-2090
 2091-2092
 2093-2094
 2095-2096
 2097-2098
 2099-2100
 2101-2102
 2103-2104
 2105-2106
 2107-2108
 2109-2110
 2111-2112
 2113-2114
 2115-2116
 2117-2118
 2119-2120
 2121-2122
 2123-2124
 2125-2126
 2127-2128
 2129-2130
 2131-2132
 2133-2134
 2135-2136
 2137-2138
 2139-2140
 2141-2142
 2143-2144
 2145-2146
 2147-2148
 2149-2150
 2151-2152
 2153-2154
 2155-2156
 2157-2158
 2159-2160
 2161-2162
 2163-2164
 2165-2166
 2167-2168
 2169-2170
 2171-2172
 2173-2174
 2175-2176
 2177-2178
 2179-2180
 2181-2182
 2183-2184
 2185-2186
 2187-2188
 2189-2190
 2191-2192
 2193-2194
 2195-2196
 2197-2198
 2199-2200
 2201-2202
 2203-2204
 2205-2206
 2207-2208
 2209-2210
 2211-2212
 2213-2214
 2215-2216
 2217-2218
 2219-2220
 2221-2222
 2223-2224
 2225-2226
 2227-2228
 2229-2230
 2231-2232
 2233-2234
 2235-2236
 2237-2238
 2239-2240
 2241-2242
 2243-2244
 2245-2246
 2247-2248
 2249-2250
 2251-2252
 2253-2254
 2255-2256
 2257-2258
 2259-2260
 2261-2262
 2263-2264
 2265-2266
 2267-2268
 2269-2270
 2271-2272
 2273-2274
 2275-2276
 2277-2278
 2279-2280
 2281-2282
 2283-2284
 2285-2286
 2287-2288
 2289-2290
 2291-2292
 2293-2294
 2295-2296
 2297-2298
 2299-2300
 2301-2302
 2303-2304
 2305-2306
 2307-2308
 2309-2310
 2311-2312
 2313-2314
 2315-2316
 2317-2318
 2319-2320
 2321-2322
 2323-2324
 2325-2326
 2327-2328
 2329-2330
 2331-2332
 2333-2334
 2335-2336
 2337-2338
 2339-2340
 2341-2342
 2343-2344
 2345-2346
 2347-2348
 2349-2350
 2351-2352
 2353-2354
 2355-2356
 2357-2358
 2359-2360
 2361-2362
 2363-2364
 2365-2366
 2367-2368
 2369-2370
 2371-2372
 2373-2374
 2375-2376
 2377-2378
 2379-2380
 2381-2382
 2383-2384
 2385-2386
 2387-2388
 2389-2390
 2391-2392
 2393-2394
 2395-2396
 2397-2398
 2399-2400
 2401-2402
 2403-2404
 2405-2406
 2407-2408
 2409-2410
 2411-2412
 2413-2414
 2415-2416
 2417-2418
 2419-2420
 2421-2422
 2423-2424
 2425-2426
 2427-2428
 2429-2430
 2431-2432
 2433-2434
 2435-2436
 2437-2438
 2439-2440
 2441-2442
 2443-2444
 2445-2446
 2447-2448
 2449-2450
 2451-2452
 2453-2454
 2455-2456
 2457-2458
 2459-2460
 2461-2462
 2463-2464
 2465-2466
 2467-2468
 2469-2470
 2471-2472
 2473-2474
 2475-2476
 2477-2478
 2479-2480
 2481-2482
 2483-2484
 2485-2486
 2487-2488
 2489-2490
 2491-2492
 2493-2494
 2495-2496
 2497-2498
 2499-2500
 2501-2502
 2503-2504
 2505-2506
 2507-2508
 2509-2510
 2511-2512
 2513-2514
 2515-2516
 2517-2518
 2519-2520
 2521-2522
 2523-2524
 252

Notes

[illegible]

COMMON ELEMENTS

Comparative Diagnostics means the process of the Engineer, Technician, Programmer, or other personnel, who are not limited to the units and its additive elements, who, when assigned to this Directorate or told to the known places in the Center, make a comparison of the units and its additive elements, and, if necessary, make a comparison of the units and its additive elements.



CERTIFICATION

[illegible]

3RD FLOOR

DATE	10/1	10/1
THE BARWOOD CONDOMINIUM II, BUILDING 14- FOR BARWOOD DEVELOPMENT CORPORATION		
3127 S BARWOOD LANE NORTH SUITE 204, FLORIDA		
FOR BARWOOD DEVELOPMENT CORPORATION		
JOHN A. GRANT, JR. EXECUTIVE PRESIDENT		
DATE	10/1	10/1
NAME	BARWOOD	BARWOOD
ADDRESS	3127 S BARWOOD LANE NORTH	3127 S BARWOOD LANE NORTH
CITY	MIAMI	MIAMI
STATE	FL	FL
ZIP	33133	33133

J. J. Smith
JOHN A. SMITH, JR.
Engineer - Fortner Bay Road
Big Stone Lake, Nebraska 68901
Nebraska or Standard

EXHIBIT "A"

PAGE
ANNEXED TO
AND EXPRESSLY MADE A PART OF
"DECLARATION OF CONDOMINIUM"
BARWOOD DEVELOPMENT CORPORATION II
BY BARWOOD DEVELOPMENT CORPORATION
DATE 12 MAY 1977

LEGEND

- 1. Entry
- 2. Stair
- 3. Elevator
- 4. Storage
- 5. Recessed Storage
- 6. Trash Chute

COMMON ELEMENTS

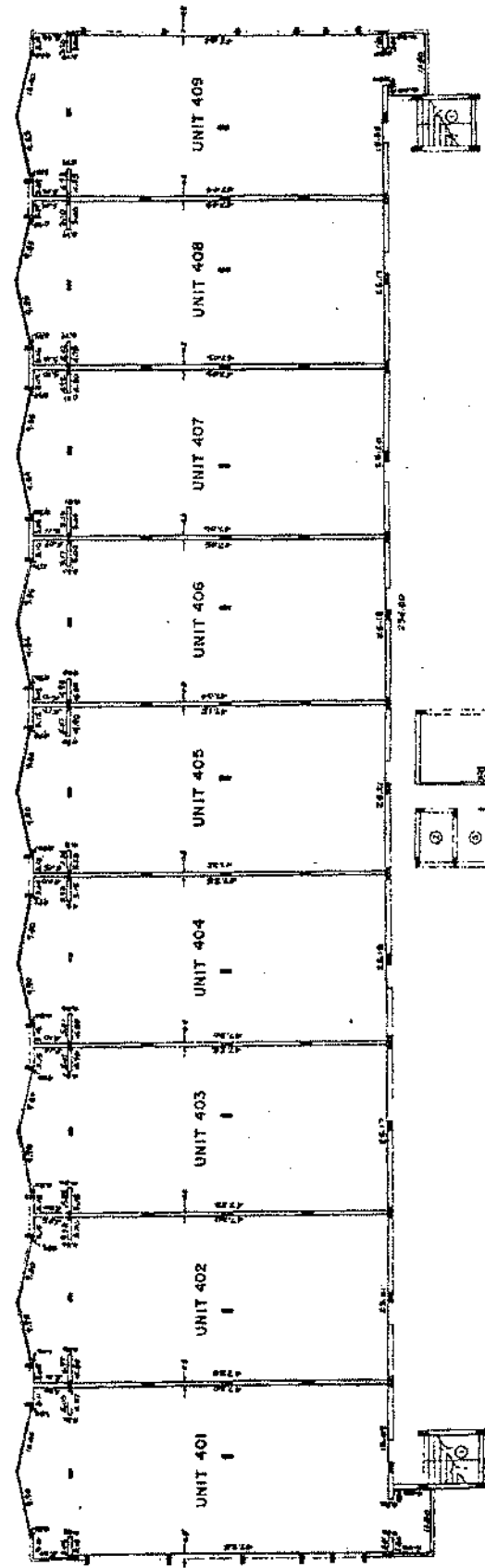
Common Elements include the portions of the Condominium project, including the common areas, which are owned by the Condominium Owners in proportion to their ownership in the Condominium project, and which are used for the common purposes of the Condominium project.

NOTES

1. The floor area of the units is as shown on the floor plan. The floor area of the common areas is as shown on the floor plan. The floor area of the units is as shown on the floor plan. The floor area of the common areas is as shown on the floor plan. The floor area of the units is as shown on the floor plan. The floor area of the common areas is as shown on the floor plan.

DESCRIPTION OF APARTMENTS & COMMON ELEMENTS

The description of apartments and common elements is as shown on the floor plan. The description of apartments and common elements is as shown on the floor plan. The description of apartments and common elements is as shown on the floor plan. The description of apartments and common elements is as shown on the floor plan.



CERTIFICATION

I, the undersigned, being a duly qualified and licensed architect, do hereby certify that the above is a true and correct representation of the actual construction of the building and its common elements, and that the same conform to the requirements of the Florida Building Code, Chapter 6, Part II, Section 607.1, and the Florida Building Code, Chapter 6, Part II, Section 607.2.

JOHN A. GRANT, JR.
Architect
Palm Beach, Florida

4TH FLOOR

THE BARWOOD CONDOMINIUM II, INC.	
FOR BARWOOD DEVELOPMENT CORPORATION	
1279 BARWOOD LANE NORTH	
P.O. BOX 1000	
PALM BEACH, FLORIDA 33480	
JOHN A. GRANT, JR.	
Architect	
P.O. BOX 1000	
PALM BEACH, FLORIDA 33480	

EXHIBIT B

LEGAL DESCRIPTION

DECLARATION OF CONDOMINIUM

FOR

BARWOOD CONDOMINIUM II, A CONDOMINIUM
PALM BEACH COUNTY, FLORIDA

LEGAL DESCRIPTION

BARWOOD CONDOMINIUM II,

a condominium

A parcel of land lying in Section 31, Township 47 South, Range 42 East, Palm Beach County, Florida, being a portion of Block "A", PLAT I of BARWOOD as recorded in Plat Book 31, Pages 24-25 of the Public Records of Palm Beach County, Florida, said parcel being more particularly described as follows:

Commencing at the centerline intersection of Southwest 66th Avenue and Southwest 19th Street, as shown on the plat of Sandalfoot Cove, Section One, as recorded in Plat Book 28, Pages 225 and 226, Public Records of Palm Beach County, Florida; thence along the centerline of said Southwest 19th Street, N. $89^{\circ} 05' 05''$ E., a distance of 205.00 feet to a point at the beginning of a curve, from which the radius point bears S. $0^{\circ} 54' 55''$ E., 446.41 feet; thence easterly, along said curve, an arc distance of 271.33 feet to a point; thence along a radial line of said curve, N. $33^{\circ} 54' 32''$ E., a distance of 40.00 feet; thence S. $56^{\circ} 05' 28''$ E., a distance of 385.96 feet; thence N. $28^{\circ} 08' 29''$ E., a distance of 401.51 feet; thence N. $36^{\circ} 52' 12''$ E., a distance of 267.77 feet to a point at the beginning of a curve from which the radius point bears S. $53^{\circ} 07' 48''$ E., a distance of 100.00 feet; thence northeasterly along said curve, an arc distance of 164.05 feet to a point; thence S. $49^{\circ} 08' 05''$ E., a distance of 193.78 feet to the Point of Beginning of the herein described parcel of land; thence continuing along the aforementioned course of S. $49^{\circ} 08' 05''$ E., a distance of 28.46 feet to a point of curvature; thence with a curve to the right having a radius of 900.00 feet, an arc length of 248.73 feet to a point; thence with a bearing of S. $56^{\circ} 42' 00''$ W., a distance of 66.12 feet to a point; thence with a bearing of S. $65^{\circ} 00' 34''$ W., a distance of 110.59 feet to a point; thence with a curve to the left having a tangent bearing of N. $24^{\circ} 59' 26''$ W., a radius of 210.00 feet, an arc length of 37.77 feet to a point; thence with a bearing of S. $54^{\circ} 42' 17''$ W., a distance of 22.25 feet to a point; thence with a bearing of S. $74^{\circ} 03' 20''$ W., a distance of 54.36 feet to a point; thence with a curve to the left having a tangent bearing of N. $1^{\circ} 19' 23''$ E., a radius of 111.67 feet, an arc length of 187.51 feet to a point; thence with a bearing of N. $46^{\circ} 53' 58''$ E., a distance of 62.28 feet to a point; thence with a bearing of S. $43^{\circ} 06' 02''$ E., a distance of 5.80 feet to a point; thence with a bearing of N. $46^{\circ} 53' 58''$ E., a distance of 20.50 feet to a point; thence with a bearing of S. $43^{\circ} 06' 02''$ E., a distance of 0.70 feet to a point; thence with a bearing of N. $46^{\circ} 53' 58''$ E., a distance of 46.00 feet to a point; thence with a bearing of N. $43^{\circ} 06' 02''$ W., a distance of 6.50 feet to a point; thence with a bearing of N. $46^{\circ} 53' 58''$ E., a distance of 119.27 feet more or less to the Point of Beginning.

Containing 1.229 Acres, more or less and subject to easements and rights-of-way of record.

SUBJECT to an easement for ingress-egress, 25 feet in width, whose centerline is described as follows:

Commencing at the centerline intersection of Southwest 18th Street and Barwood Lane North as shown on Plat 1 of Barwood as recorded in Plat Book 31, Pages 24 and 25, Public Records of Palm Beach County, Florida; thence with a bearing of N. $19^{\circ} 01' 23''$ E., along the centerline of Barwood Lane North a distance of 300.00 feet to a point of curvature; thence with a curve to the left having a radius of 650.00 feet, an arc length of 200.80 feet to a point of compound curvature; thence with a curve to the left having a radius of 86.67 feet, an arc length of 67.20 feet to a point; thence with a bearing of N. $46^{\circ} 53' 58''$ E., a distance of 25.00 feet to the Point of Beginning of the centerline of the subject easement; thence continuing along the aforementioned course a distance of 52.9 feet to a point, being designated as Point "B"; thence with a bearing of N. $43^{\circ} 06' 02''$ W., a distance of 81.2 feet more or less to the end of the centerline of the subject easement.

Also beginning at the aforementioned Point "B"; thence with a bearing of S. $43^{\circ} 06' 02''$ E., a distance of 77.5 feet to a point; thence with a curve to the right, having a radius of 222.50 feet an arc length of 70.3 feet more or less to the end of the centerline of the 25 foot wide subject easement.

Also subject to a utility easement as shown on PLAT I of BARWOOD as recorded in Plat Book 31, Pages 24 and 25 of the Public Records of Palm Beach County, Florida.

TOGETHER WITH an easement for ingress-egress, 25 feet in width, whose centerline is described as follows:

Commencing at the centerline intersection of Southwest 18th Street and Barwood Lane North as shown on Plat I of Barwood as recorded in Plat Book 31, Pages 24 and 25, Public Records of Palm Beach County, Florida; thence with a bearing of N. $19^{\circ} 01' 23''$ E., along the centerline of Barwood Lane North a distance of 300.00 feet to a point of curvature; thence with a curve to the left having a radius of 650.00 feet, an arc length of 12.33 feet to a point; thence radially with a bearing of S. $72^{\circ} 03' 51''$ E., a distance of 25.00 feet to the Point of Beginning of the centerline of the subject easement; thence continuing along the aforementioned course of S. $72^{\circ} 03' 51''$ E., a distance of 21.67 feet to a point; thence with a curve to the left having a radius of 35.00 feet, an arc length of 24.03 feet to a point; thence with a bearing of N. $68^{\circ} 36' 00''$ E., a distance of 86.42 feet to a point; thence with a bearing of N. $21^{\circ} 24' 00''$ W., a distance of 119.70 feet to a point; thence with a bearing of N. $68^{\circ} 36' 00''$ E., a distance of 34.75 feet, more or less to the end of the centerline of the subject easement.

PALM BEACH REC 2717 PAGE 1577

ALSO TOGETHER WITH an easement for ingress-egress, 25 feet in width, whose centerline is described as follows:

Commencing at the centerline intersection of Southwest 18th Street and Barwood Lane North as shown on Plat 1 of Barwood as recorded in Plat Book 31, Pages 24 and 25, Public Records of Palm Beach County, Florida; thence with a bearing of N. $19^{\circ} 01' 23''$ E., along the centerline of Barwood Lane North a distance of 300.00 feet to a point of curvature; thence with a curve to the left having a radius of 650.00 feet, an arc length of 12.33 feet to a point; thence radially with a bearing of S. $72^{\circ} 03' 51''$ E., a distance of 46.67 feet to a point; thence with a curve to the left having a radius of 35.00 feet, an arc length of 24.03 feet to a point; thence with a bearing of N. $68^{\circ} 36' 00''$ E., a distance of 86.42 feet to a point; thence with a bearing of N. $21^{\circ} 24' 00''$ W., a distance of 119.70 feet to a point; thence with a bearing of N. $68^{\circ} 36' 00''$ E., a distance of 34.75 feet to the Point of Beginning of the centerline of the subject easement; thence continuing along the aforementioned course of N. $68^{\circ} 36' 00''$ E., a distance of 34.75 feet to a point; thence with a bearing of N. $21^{\circ} 24' 00''$ W., a distance of 18.85 feet to a point; thence with a curve to the left having a radius of 222.50 feet, an arc length of 13.9 feet more or less to the end of the centerline of the subject easement.

LEGAL DESCRIPTION

RECREATION FACILITIES, BARWOOD CONDOMINIUM II

That parcel of land denoted as Recreation Area "A", as shown on Plat I of Barwood, which is recorded in Plat Book 31, Pages 24 and 25, Public Records, Palm Beach County, Florida.

TOGETHER WITH:

That portion of Block A contained within the loop of Barwood Lane North as shown on the aforesaid Plat I of Barwood, further described as follows:

Commencing at the centerline intersection of Southwest 18th Street and Barwood Lane North as shown on the aforesaid Plat I of Barwood; thence with a bearing of N. $19^{\circ} 01' 23''$ E., along the centerline of Barwood Lane North a distance of 300.00 feet to a point of curvature; thence with a curve to the left having a radius of 650.00 feet, an arc length of 200.80 feet to a point; thence with a bearing of N. $88^{\circ} 40' 37''$ W., a distance of 25.00 feet to the Point of Beginning; thence with a curve to the right having a tangent bearing of S. $1^{\circ} 19' 23''$ W., a radius of 625.00 feet, an arc length of 44.39 feet to a point; thence with a bearing of S. $52^{\circ} 46' 59''$ W., a distance of 36.80 feet to a point; thence with a bearing of N. $79^{\circ} 49' 37''$ W., a distance of 41.29 feet to a point; thence with a curve to the right having a radius of 61.67 feet, an arc length of 281.09 feet more or less to the Point of Beginning.

ALSO TOGETHER WITH:

A parcel of land lying in Section 31, Township 47 South, Range 42 East, Palm Beach County, Florida, being a portion of Block "A", PLAT I of BARWOOD as recorded in Plat Book 31, Pages 24-25 of the Public Records of Palm Beach County, Florida, said parcel being more particularly described as follows:

Commencing at the centerline intersection of Southwest 66th Avenue and Southwest 19th Street, as shown on the plat of Sandalfoot Cove, Section One, as recorded in Plat Book 28, Pages 225 and 226, Public Records of Palm Beach County, Florida; thence along the centerline of said Southwest 19th Street, N. $89^{\circ} 05' 05''$ E., a distance of 205.00 feet to a point at the beginning of a curve, from which the radius point bears S. $0^{\circ} 54' 55''$ E., 446.41 feet; thence easterly, along said curve, an arc distance of 271.33 feet to a point; thence along a radial line of said curve, N. $33^{\circ} 54' 32''$ E., a distance of 40.00 feet;

thence S. $56^{\circ} 05' 28''$ E., a distance of 583.62 feet to a point; thence with a curve to the left, having a radius of 1205.00 feet, an arc length of 15.07 feet to a point; thence with a bearing of N. $28^{\circ} 08' 29''$ E., a distance of 105.10 feet to the Point of Beginning of the herein described parcel of land; thence with a bearing of N. $61^{\circ} 51' 31''$ W., a distance of 28.78 feet to a point; thence with a bearing of N. $28^{\circ} 08' 29''$ E., a distance of 179.00 feet to a point; thence with a bearing of S. $61^{\circ} 51' 31''$ E., a distance of 28.78 feet to a point; thence with a bearing of S. $28^{\circ} 08' 29''$ W., a distance of 179.00 feet more or less to the Point of Beginning.

ALSO TOGETHER WITH an easement for ingress-egress, 25 feet in width, whose centerline is described as follows:

Commencing at the centerline intersection of Southwest 18th Street and Barwood Lane North as shown on Plat 1 of Barwood, as recorded in Plat Book 31, Pages 24 and 25, Public Records of Palm Beach County, Florida; thence with a bearing of N. $19^{\circ} 01' 23''$ E., along the centerline of Barwood Lane North a distance of 300.00 feet to a point of curvature; thence with a curve to the left having a radius of 650.00 feet, an arc length of 200.80 feet to a point of compound curvature; thence with a curve to the left having a radius of 86.67 feet, an arc length of 281.72 feet to a point; thence with a bearing of S. $85^{\circ} 05' 03''$ W., a distance of 25.00 feet to the Point of Beginning of the centerline of the subject easement; thence with a curve to the right having a tangent bearing of N. $80^{\circ} 18' 45''$ W., a radius of 100.00 feet, an arc length of 32.2 feet to a point; thence with a bearing of N. $61^{\circ} 51' 31''$ W., a distance of 36.0 feet to a point; thence with a bearing of S. $28^{\circ} 08' 29''$ W., a distance of 48.50 feet more or less to the end of the centerline of the subject easement.

ALSO TOGETHER WITH an easement for ingress-egress, 25 feet in width, whose centerline is described as follows:

Commencing at the centerline intersection of Southwest 18th Street and Barwood Lane North as shown on Plat 1 of Barwood, as recorded in Plat Book 31, Pages 24 and 25, Public Records of Palm Beach County, Florida; thence with a bearing of N. $19^{\circ} 01' 23''$ E., along the centerline of Barwood Lane North a distance of 300.00 feet to a point of curvature; thence with a curve to the left having a radius of 650.00 feet, an arc length of 200.80 feet to a point of compound curvature; thence with a curve to the left having a radius of 86.67 feet, an arc length of 281.72 feet to a point; thence with a bearing of S. $85^{\circ} 05' 03''$ W., a distance of 25.00 feet to a point; thence with a curve to the right having a tangent bearing of N. $80^{\circ} 18' 45''$ W.,

a radius of 100.00 feet, an arc length of 32.2 feet to a point, thence with a bearing of N. $61^{\circ} 51' 31''$ W., a distance of 36.0 feet to a point; thence with a bearing of S. $28^{\circ} 08' 29''$ W., a distance of 48.50 feet to the Point of Beginning of the centerline of the subject easement; thence with a bearing of S. $28^{\circ} 08' 29''$ W., a distance of 179.0 feet more or less to the end of the centerline of the subject easement.

ALSO TOGETHER WITH:

A parcel of land lying in Section 31, Township 47 South, Range 42 East, Palm Beach County, Florida, being a portion of Block "A", PLAT I of BARWOOD as recorded in Plat Book 31, Pages 24-25 of the Public Records of Palm Beach County, Florida and a portion of PLAT II of BARWOOD as recorded in Plat Book 33, Pages 27-28 of the Public Records of Palm Beach County, Florida, said parcel being more particularly described as follows:

Commencing at the centerline intersection of Southwest 66th Avenue and Southwest 19th Street, as shown on the plat of Sandalfoot Cove, Section One, as recorded in Plat Book 28, Pages 225 and 226, Public Records of Palm Beach County, Florida; thence along the centerline of said Southwest 19th Street, N. $89^{\circ} 05' 05''$ E., a distance of 205.00 feet to a point at the beginning of a curve, from which the radius point bears S. $0^{\circ} 54' 55''$ E., 446.41 feet; thence easterly, along said curve, an arc distance of 271.33 feet to a point; thence along a radial line of said curve, N. $33^{\circ} 54' 32''$ E., a distance of 40.00 feet; thence S. $56^{\circ} 05' 28''$ E., a distance of 583.62 feet to a point; thence with a curve to the left, having a radius of 1205.00 feet, an arc length of 364.15 feet to the Point of Beginning of the herein described parcel of land; thence with a bearing of N. $27^{\circ} 11' 29''$ W., a distance of 36.10 feet to a point; thence with a bearing of N. $19^{\circ} 01' 23''$ E., a distance of 213.94 feet to a point; thence with a curve to the left having a radius of 675.00 feet an arc length of 208.52 feet to a point; thence with a bearing of N. $74^{\circ} 03' 20''$ E., a distance of 54.36 feet to a point; thence with a curve to the right having a tangent bearing of S. $35^{\circ} 17' 43''$ E., a radius of 187.75 feet, an arc length of 45.53 feet to a point; thence with a bearing of S. $21^{\circ} 24' 00''$ E., a distance of 75.55 feet to a point; thence with a bearing of N. $68^{\circ} 36' 00''$ E., a distance of 22.25 feet to a point; thence with a bearing of S. $21^{\circ} 24' 00''$ E., a distance of 163.00 feet to a point; thence with a bearing of S. $68^{\circ} 36' 00''$ W., a distance of 22.25 feet to a point; thence with a bearing of S. $21^{\circ} 24' 00''$ E., a distance of 191.00 feet to a point; thence with a bearing of N. $68^{\circ} 36' 00''$ E., a distance of 67.25 feet to a point; thence with a bearing of S. $21^{\circ} 24' 00''$ E., a distance of 95.11 feet to a point lying on the North right-of-way line of S.W. 18th Street; thence with a bearing of West along said North right-of-way line of Southwest 18th Street a distance of

73.63 feet to a point; thence with a curve to the right having a radius of 1205.00 feet, an arc length of 349.00 feet more or less to the Point of Beginning.

ALSO TOGETHER WITH an easement for ingress-egress, 25 feet in width, whose centerline is described as follows:

Commencing at the centerline intersection of Southwest 18th Street and Barwood Lane North as shown on Plat 1 of Barwood as recorded in Plat Book 31, Pages 24 and 25, Public Records of Palm Beach County, Florida; thence with a bearing of N. $19^{\circ} 01' 23''$ E., along the centerline of Barwood Lane North a distance of 300.00 feet to a point of curvature; thence with a curve to the left having a radius of 650.00 feet, an arc length of 12.33 feet to a point; thence radially with a bearing of S. $72^{\circ} 03' 51''$ E., a distance of 46.67 feet to a point; thence with a curve to the left having a radius of 35.00 feet, an arc length of 24.03 feet to a point; thence with a bearing of N. $68^{\circ} 36' 00''$ E., a distance of 86.42 feet to a point; thence with a bearing of N. $21^{\circ} 24' 00''$ W., a distance of 119.70 feet to a point; thence with a bearing of N. $68^{\circ} 36' 00''$ E., a distance of 34.75 feet to the Point of Beginning of the centerline of the subject easement; thence continuing along the aforementioned course of N. $68^{\circ} 36' 00''$ E., a distance of 34.75 feet to a point; thence with a bearing of S. $21^{\circ} 24' 00''$ E., a distance of 244.70 feet more or less to the end of the centerline of the subject easement.

ALSO TOGETHER WITH an easement for ingress-egress, 25 feet in width, whose centerline is described as follows:

Commencing at the centerline intersection of Southwest 18th Street and Barwood Lane North as shown on Plat 1 of Barwood as recorded in Plat Book 31, Pages 24 and 25, Public Records of Palm Beach County, Florida; thence with a bearing of N. $19^{\circ} 01' 23''$ E., along the centerline of Barwood lane North a distance of 300.00 feet to a point of curvature; thence with a curve to the left having a radius of 650.00 feet, an arc length of 12.33 feet to a point; thence radially with a bearing of S. $72^{\circ} 03' 51''$ E., a distance of 46.67 feet to a point; thence with a curve to the left having a radius of 35.00 feet, an arc length of 24.03 feet to a point; thence with a bearing of N. $68^{\circ} 36' 00''$ E., a distance of 16.92 feet to a point; thence with a bearing of S. $21^{\circ} 24' 00''$ E., a distance of 281.00 feet to a point; thence with a bearing of N. $68^{\circ} 36' 00''$ E., a distance of 104.25 feet to the Point of

Beginning of the centerline of the subject easement; thence continuing along the aforementioned course of N. $68^{\circ} 36' 00''$ E., a distance of 34.75 feet to a point; thence with a bearing of N. $21^{\circ} 24' 00''$ W., a distance of 156.00 feet more or less to the end of the centerline of the subject easement.

Containing a total of 4.568 Acres, more or less and subject to easements and rights-of-way of record.

